

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA, LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

COMPLAINANT’S MOTION TO COMPEL PRODUCTION OF DOCUMENTS

Pursuant to 46 C.F.R. §§ 502.150 and 502.141, Complainant SeaFair USA LLC (“SeaFair”) by and through the undersigned counsel, hereby moves to compel Respondents, Atlantic Forwarding Ltd. (“Atlantic”) and Sterling Container Line Limited (“Sterling”), to provide certain documents requested in SeaFair’s First Request for Production and thus far withheld. In support thereof, Complaint States as follows:

BACKGROUND

SeaFair brought the instant matter before the Commission due to Respondents’ violations of the Shipping Act of 1984, as amended, by obtaining or attempting to obtain ocean transportation for property at less than the charges that would otherwise apply (46 U.S.C. §41102(a)) and engaging in unfair practices in the matter of charges (46 U.S.C. §41104(a)(4)(A)). As a result of Respondents’ conduct, SeaFair has suffered substantial damages.

SeaFair served its First Request for Production on Respondents on March 10, 2023. Respondents requested a twenty-one (21) day extension to respond to the requests and SeaFair’s

counsel agreed to a fourteen (14) day extension until April 24, 2023. On April 24, 2023, Respondents submitted their responses to SeaFair's Interrogatories and Requests for Admissions but did not submit their responses to SeaFair's Requests for Production. On the same day, the Parties filed a joint motion to extend the discovery deadline to May 01, 2023, which was granted by the Administrative Law Judge. On May 01, 2023, Respondents served their responses to SeaFair's Requests for Production, however, they refused to provide several of the documents requested, as outlined both in Exhibit A and in the below section "Relevant Production Requests." SeaFair submitted a second set of discovery requests on May 01, 2023, and received responses on May 31, 2023. Respondents objected to multiple discovery requests and many of SeaFair's requests remain unanswered, either partially or entirely.

The Parties diligently attempted to resolve discovery disputes without involving the Commission and filed a Joint Motion to Amend the Scheduling Order on June 1, 2023 which allowed for: a one (1) day extension until June 02, 2023, for SeaFair to fully respond to outstanding discovery requests from Respondents; a seven (7) day extension until June 08, 2023, for the Parties to attempt to amicably resolve disputes relating to unanswered or incompletely responded discovery requests; and a ten (10) day extension until June 11, 2023 for the completion of all discovery, including the filing of discovery-related motions. The Administrative Law Judge granted this motion, and the deadlines for discovery were extended.

Despite these efforts to resolve discovery disputes, Complainant has still not received satisfactory responses to several of its requests. With no other recourse, Complainant now turns to this Commission to compel Respondents' to respond.

LEGAL STANDARD

Pursuant to 46 C.F.R. § 502.150, “a party may file a motion . . . for an order compelling compliance with its discovery requests.” 46 C.F.R. § 502.12 states that “[i]n proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” See also Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc., 2011 WL 7144008, at *34 (F.M.C. 2011). As to scope of discovery, both Fed .R. Civ. P. 26(b) and 46 C.F.R. § 502.141(e)(1) provide that any nonprivileged matter that is relevant to any party's claim or defense is discoverable and "relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence." Relevance is broadly defined in both rules of practice and rules of evidence. See Fed. R. Civ. P. 26(b):

Parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense and proportional to the needs of the case, considering the importance of the issues at stake in the action, the amount in controversy, the parties' relative access to relevant information, the parties' resources, the importance of the discovery in resolving the issues, and whether the burden or expense of the proposed discovery outweighs its likely benefit. Information within this scope of discovery need not be admissible in evidence to be discoverable.

Likewise, 46 C.F.R. § 502.141(e)(1) provides that "[r]elevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence", and Fed. R. Evid. 401 states that "[e]vidence is relevant if: (a) it has any tendency to make a fact more or less probable than it would be without the evidence; and (b) the fact is of consequence in determining the action." Relevancy should be "construed liberally and with common sense and discovery should be allowed unless the information sought has no conceivable bearing on the case." Soto v. City of Concord, 162 F.R.D. 03, 610 (N.D. Cal. 1995) (quoting Miller v. Pancucci, 141 F.R.D. 292, 296 (C.D. Cal. 1992), see also Ragge v.

MCA/Universal, 165 F.R.D. 601, 605 (C.D. Cal. 1995)("Discovery should ordinarily be allowed under the concept of relevancy unless it is clear that the information sought can have no possible bearing upon the subject matter of this action.").

ARGUMENT AND RELEVANT PRODUCTION REQUESTS

The relevant requests from SeaFair and Atlantic's and Sterling's corresponding responses are attached hereto as Exhibit A as a supporting document. For the ease of discussion, SeaFair's requests and Atlantic's responses are also reproduced verbatim below together with SeaFair's argument as to why each Atlantic should be compelled to respond.

FROM SEAFAIR'S FIRST SET OF INTERROGATORIES

- a) **Request no. 8.** Please identify any house bills of lading listed in Exhibit 1 to Complainant's Requests for Admissions that Sterling denies issuing (by itself or through Atlantic and/or its affiliates), if any.

Atlantic's Response: Atlantic objects to this interrogatory to the extent that it seeks information not relevant to SeaFair or Respondents' claims or defenses and is not proportional to the needs of the case.

Argument to compel: This Request seeks information relevant to SeaFair's claims and is proportional to the needs of the case because the house bills of lading listed in Exhibit 1 to Complainant's Requests for Admissions are the house bills of lading under which Respondents owe SeaFair money.

FROM SEAFAIR'S SECOND SET OF INTERROGATORIES

- a) **Request no. 2.** Please identify your corporate structure, including names and addresses of officers, directors and shareholders.

Atlantic's Response: Atlantic (Atlantic Forwarding AG) is a Swiss Limited entity (UID: CHE-101.507.822) based in Basel, Switzerland. The current board of directors for Atlantic Forwarding Group is composed of Daniel Weissenberger (Chief Executive Officer), Christoph Ritt (Chief Financial Officer), and Marc Matschullat (Chief Commercial Officer and Chief Procurement Officer).

Argument to compel: Atlantic's response does not identify the shareholders as requested. Names of shareholders are relative to Complainant's claims and defenses to show that due to the ownership and/or control by MSC over Atlantic, Respondents are not being invoiced by MSC.

- b) **Request no. 4.** Please state your reason(s) for not attempting to collect the outstanding charges from the consignees and/or shippers identified on Sterling's house bills of lading after receiving the SeaFair invoices referenced in the Interrogatory above.

Atlantic's Response: Atlantic objects to this Interrogatory to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Atlantic's defenses. The documents produced in this matter speak for themselves.

Argument to compel: Whether Sterling/Atlantic has attempted to collect outstanding charges from the consignee and/or shippers identified on Sterling's house bills of lading and what efforts have been taken will show whether Sterling/Atlantic violated the Shipping Act by providing transportation not in accordance with its tariff. Therefore, this

Request is likely to lead to the discovery of relevant and/or admissible evidence, and the information being sought is relevant to SeaFair's claims.

FROM SEAFAIR'S FIRST SET OF REQUESTS FOR PRODUCTION

- a) **SeaFair's Request No. 1:** Please provide all documents related to the services SeaFair performed for you and/or Atlantic from May 2021 to present.

Atlantic's Response: Atlantic objects to this request on the grounds that it is overbroad, vague, seeks duplicative information, and seeks information that is not proportional to the needs of the case. It is unclear what "services" are contemplated by this request. Notwithstanding the foregoing, documents responsive to this request are located in Discovery Exhibit 13.

Argument to Compel: This request is not overbroad or vague: beginning in May 2021, Sterling, a subsidiary of Atlantic, engaged SeaFair to manage document turnover for US shipments under Sterling's house bill of lading, ("HBL"). These services continued into October 2022. These are the services contemplated by the request.

Additionally, the information requested is not duplicative: as the parent company of Sterling, Atlantic has access to documents related to the services rendered that are not readily accessible to SeaFair.

- b) **SeaFair's Request No. 3:** Please provide all master bills of lading in which either Atlantic or Sterling was the shipper and/or consignee and SeaFair was the consignee and/or notify party.

Atlantic's Response: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant.

Argument to Compel: This request is not overbroad: SeaFair conducted business with Sterling beginning in May 2021 and ending with failure to pay fees in October 2022. As such, this request encompasses a little over a year of documentation, confined to dealings between SeaFair, Sterling and Atlantic.

Additionally, the information requested is not duplicative: as the parent company of Sterling, Atlantic has access to documents that are not readily accessible to SeaFair. Moreover, these bills of lading are necessarily connected to other requests for documentation including: invoices and house bills of lading related to the master bills of lading. Respondents have access to ALL the requested documents whereas Complainant's and Respondents' production does not cover ALL the requested documents.

- c) **SeaFair's Request No. 5:** Please provide all invoices you received from the carriers of the master bills of lading corresponding to Complainant Request No. 3 for services and/or charges related to the shipments carried under those bills of lading.

Atlantic's Response: See response to Request No. 3.

Argument to Compel: See argument to compel Request No. 3 above.

- d) **SeaFair's Request No. 6:** Please provide all house bills of lading corresponding to the master bills of lading corresponding to Complainant Request No. 3.

Atlantic's Response: See response to Request No. 3.

Argument to Compel: See argument to compel Request No. 3 above. Additionally, the house bills of lading are substantially more accessible to Respondents than they are to SeaFair.

- e) **SeaFair's Request No. 8:** Please provide all invoices you issued to your customers, shippers, and/or consignees who were the merchants of the house bills of lading provided pursuant to Complainant Request No. 6 for services and/or charges related to the shipments carried under those bills of lading.

Atlantic's Response: Atlantic objects to this request on the grounds that it is overbroad, vague, seeks duplicative information, and seeks information that is not proportional to the needs of the case. See response to Request No. 3.

Argument to Compel: See argument to compel Request No. 3 above.

- f) **SeaFair's Request No. 16:** Please provide all working group lists, organization charts, directories, or other documents sufficient to identify individuals and entities with knowledge of the facts which serve as the basis for the Verified Answer and Defenses to Complaint.

Atlantic's Response: Atlantic objects to this request on the grounds that it is overly broad, vague, irrelevant, has already been produced in Atlantic's discovery responses (e.g., Atlantic's Responses to Complainant's First Request for Interrogatories), and seeks information that is not proportional to the needs of the case.

Argument to Compel: This request is neither overbroad nor vague; it is limited to organizational documentation related to the individuals who provided information used to draft the Verified Answer and Defense to the Complaint. This would include names and organizational charts.

This information is relevant should SeaFair wish to identify and depose these individuals.

FROM SEAFAIR'S SECOND SET OF REQUESTS FOR PRODUCTION

- a) **Request No. 3:** Please provide copies of all master bills of lading listed in Exhibit 1 to these Requests for Production (in Excel format), if not already produced in response to Request 1 above.

Atlantic's response: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant. Notwithstanding the foregoing, Documents responsive to this request are located in Discovery Exhibit 1.

Argument to compel: This request is not overbroad. SeaFair conducted business with Sterling beginning in May 2021 and ending with failure to pay fees in October 2022. As such, this request encompasses a little over a year of documentation, confined to dealings between SeaFair, Sterling, and Atlantic.

Additionally, the information requested is not duplicative. As the parent company of Sterling, Atlantic has access to documents that are not readily accessible to SeaFair. Moreover, these bills of lading are necessarily connected to other requests for documentation including invoices and house bills of lading related to the master bills of lading.

Atlantic only produced a small set of master bills of lading listed in its Discovery Exhibit 1. It has refused to produce the remaining master bills of lading or confirm that it does not have the remaining master bills of lading.

- b) **Request No. 4:** Please provide a list of master bills of lading, by number, which were issued by MSC and in which Sterling was identified as shipper and SeaFair was identified as either forwarding agent or consignee.

Atlantic's response: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant.

Argument to compel: This request is not overbroad. SeaFair conducted business with Sterling beginning in May 2021 and ending with failure to pay fees in October 2022. As such, this request encompasses a little over a year of documentation, confined to dealings between SeaFair, Sterling and Atlantic.

Additionally, the information requested is not duplicative. As the parent company of Sterling, Atlantic has access to documents that are not readily accessible to SeaFair. Moreover, these bills of lading are necessarily connected to other requests for documentation including invoices and house bills of lading related to the master bills of lading.

- c) **Request No. 6:** Please provide copies of all house bills of lading listed in Exhibit 2 to these Requests for Production (in Excel format), if not already produced in response to Request 5 above.

Atlantic's response: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant. Notwithstanding the foregoing, documents responsive to this request are located in Discovery Exhibit 1.

Argument to compel: This request is not overbroad: SeaFair conducted business with Sterling beginning in May 2021 and ending with failure to pay fees in October 2022. As

such, this request encompasses a little over a year of documentation, confined to dealings between SeaFair, Sterling and Atlantic.

Additionally, the information requested is not duplicative. As the parent company of Sterling, Atlantic has access to documents that are not readily accessible to SeaFair. Moreover, these bills of lading are necessarily connected to other requests for documentation including invoices and house bills of lading related to the master bills of lading.

Atlantic only produced a small set of house bills of lading listed in Exhibit 2. It has refused to produce the remaining master bills of lading or confirm that it does not have the remaining house bills of lading.

- d) **Complainant Request No. 7:** Please provide a list of house bills of lading, by number, which were issued by Sterling and for which SeaFair was identified as delivery agent in your ACOP system.

Atlantic's response: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant.

Argument to compel: This request is not overbroad: SeaFair conducted business with Sterling beginning in May 2021 and ending with failure to pay fees in October 2022. As such, this request encompasses a little over a year of documentation, confined to dealings between SeaFair, Sterling and Atlantic.

Additionally, the information requested is not duplicative. As the parent company of Sterling, Atlantic has access to documents that are not readily accessible to SeaFair.

Moreover, these bills of lading are necessarily connected to other requests for documentation including invoices and house bills of lading related to the master bills of lading.

- e) **Complainant Request No. 9:** Please provide all agency agreements relevant to this action executed between you and Sterling.

Atlantic's response: Based on information and belief, none such agreements exist outside of what has already been produced to SeaFair by Atlantic.

Argument to compel: Atlantic does not appear to have produced any agency agreement. It failed to identify any agency agreements produced by Bates number or Exhibit number when requested.

FROM SEAFAIR'S SECOND SET OF REQUESTS FOR ADMISSION

- a) **Request for Admission No. 3:** Admit that the house bills of lading attached as Exhibit 1 to this Request for Admission were issued by Sterling.

Atlantic's response: Atlantic objects to this request to the extent that it is unclear and ambiguous. Notwithstanding the foregoing, Atlantic admits that on the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions on pages 2, 21, 40, 59, 78, 97, 116, 135, 154, 173, 192, 211, 230, 249, 268, 287, 306, 325, 344, and 363 identifies the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee.

Argument to compel: Atlantic has failed to admit or deny the remaining pages of the house bills of lading identified in SeaFair's Exhibit 2 to the Second Set of Requests for

Admissions. The exhibit attached as Exhibit 2 to Complainant's Second Request for Admission consisted of house bills of lading issued by Sterling, and this Request No. 3 should have referred to Exhibit 2, not Exhibit 1. Complainant requested that Respondents re-answer this Request by referring to Exhibit 2. Respondents refused on the ground that it was an attempt to serve discovery requests past the discovery request deadline. The request that Respondents refer to the correct Exhibit is not an attempt to serve discovery requests post the deadline. The labeling of the Exhibits was clearly a mistake. Respondents had the obligation to seek clarification when it was apparent that Complainant had inadvertently mislabelled the Exhibits.

- b) **Request for Admission No. 5:** Admit that under the house bills of lading listed in Exhibit 1 and the house bill of lading terms and conditions, the shippers and consignees are liable to Sterling for freight as defined in Sterling Bill of Lading Terms and Conditions produced as Exhibit 14 to Sterling's Response to SeaFair's First Requests for Production.

Atlantic's response: Atlantic objects to this request to the extent that it is unclear, ambiguous and duplicative. Notwithstanding the foregoing, Atlantic admits that the terms and conditions attached to the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions on pages 2, 21, 40, 59, 78, 97, 116, 135, 154, 173, 192, 211, 230, 249, 268, 287, 306, 325, 344, and 363 define "Freight and Charges" in Section 16 as follows...

Argument to compel: Atlantic has failed to admit or deny the remaining pages of the house bills of lading identified in SeaFair's Exhibit 2 to the Second Set of Requests for Admissions. The exhibit attached as Exhibit 2 to Complainant's Second Request for

Admission consisted of house bills of lading issued by Sterling, and this Request No. 3 should have referred to Exhibit 2, not Exhibit 1. Complainant requested that Respondents re-answer this Request by referring to Exhibit 2. Respondents refused on the ground that it was an attempt to serve discovery requests past the discovery request deadline. The request that Respondents refer to the correct Exhibit is not an attempt to serve discovery requests post the deadline. The labeling of the Exhibits was clearly a mistake. Respondents had the obligation to seek clarification when it was apparent that Complainant had inadvertently mislabelled the Exhibits.

- c) **Request for Admission No. 8:** Admit that the master bills of lading attached as Exhibit 2 were issued by MSC.

Atlantic's response: Atlantic admits that the Sea Waybill identified on page 1 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions was issued by MSC. For the bills of lading identified in pages 3-40 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions, Sterling is the carrier identified.

Argument to compel: Atlantic has failed to admit or deny the remaining pages of the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions. The exhibit attached as Exhibit 1 to Complainant's Second Request for Admission consisted of master bills of lading issued by MSC, and this Request No. 3 should have referred to Exhibit 1, not Exhibit 2. Complainant requested that Respondents re-answer this Request by referring to Exhibit 1. Respondents refused on the ground that it was an attempt to serve discovery requests past the discovery request deadline. The request that Respondents refer to the correct Exhibit is not an attempt to serve discovery requests post the deadline. The labeling of the Exhibits was clearly a mistake.

Respondents had the obligation to seek clarification when it was apparent that Complainant had inadvertently mislabelled the Exhibits.

- d) **Request for Admission No. 9:** Admit that Atlantic was Sterling's agent for the house bills of lading listed in Exhibit 1 to this Request for Admission.

Atlantic's response: Atlantic admits that the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions on pages 2, 21, 40, 59, 78, 97, 116, 135, 154, 173, 192, 211, 230, 249, 268, 287, 306, 325, 344, and 363 identify the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee.

Argument to compel: Atlantic has failed to admit or deny the remaining pages of the house bills of lading identified in SeaFair's Exhibit 2 to the Second Set of Requests for Admissions. The exhibit attached as Exhibit 2 to Complainant's Second Request for Admission consisted of master bills of lading issued by MSC, and this Request No. 3 should have referred to Exhibit 2, not Exhibit 1. Complainant requested that Respondents re-answer this Request by referring to Exhibit 2. Respondents refused on the ground that it was an attempt to serve discovery requests past the discovery request deadline. The request that Respondents refer to the correct Exhibit is not an attempt to serve discovery requests post the deadline. The labeling of the Exhibits was clearly a mistake. Respondents had the obligation to seek clarification when it was apparent that Complainant had inadvertently mislabelled the Exhibits.

- e) **Request for Admission No. 10:** Admit that the master bills of lading attached Exhibit 2 to this Request for Admission was issued by MSC.

Atlantic's response: Atlantic admits that the Sea Waybill identified on page 1 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions was issued by MSC. For the bills of lading identified in pages 3-40 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions, Sterling is the carrier identified.

Argument to compel: Atlantic has failed to admit or deny the remaining pages of the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions. The exhibit attached as Exhibit 1 to Complainant's Second Request for Admission consisted of master bills of lading issued by MSC, and this Request No. 3 should have referred to Exhibit 1, not Exhibit 2. Complainant requested that Respondents re-answer this Request by referring to Exhibit 1. Respondents refused on the ground that it was an attempt to serve discovery requests past the discovery request deadline. The request that Respondents refer to the correct Exhibit is not an attempt to serve discovery requests post the deadline. The labeling of the Exhibits was clearly a mistake. Respondents had the obligation to seek clarification when it was apparent that Complainant had inadvertently mislabelled the Exhibits.

- f) **Request for Admission No. 17:** Admit that SeaFair was the destination agent for Atlantic and/or Sterling for master bills of lading attached as Exhibit 2 to this Request for Admission.

Atlantic's response: Atlantic admits that SeaFair is identified as the destination agent on the following bills of lading in Exhibit 2 to SeaFair's Second Set of Requests for Admission: No. SCLNSA322033; No. SCLDLC276056; No. SCLDLC276035; No. SCLDLC276036; No. SCLDLC321600; No. SCLDLC277285; No. SCLDLC322463; No. SCLDLC322473; No. SCLDLC322459; No. SCLDLC324762; No.

SCLDLC324578; No. SCLDLC324575; No. SCLDLC324923; No. SCLDLC324916; No. SCLDLC325467; No. SCLDLC325476; No. SCLDLC325455; No. SCLDLC325288; No. SCLDLC326645.

Argument to compel: Atlantic has failed to admit or deny the remaining pages of the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions. The exhibit attached as Exhibit 1 to Complainant's Second Request for Admission consisted of master bills of lading issued by MSC, and this Request No. 3 should have referred to Exhibit 1, not Exhibit 2. Complainant requested that Respondents re-answer this Request by referring to Exhibit 1. Respondents refused on the ground that it was an attempt to serve discovery requests past the discovery request deadline. The request that Respondents refer to the correct Exhibit is not an attempt to serve discovery requests post the deadline. The labeling of the Exhibits was clearly a mistake. Respondents had the obligation to seek clarification when it was apparent that Complainant had inadvertently mislabelled the Exhibits.

CONCLUSION

For all the foregoing reasons, SeaFair hereby moves for an Order compelling Respondents to promptly produce all requested documents and to respond completely to the requests cited herein within the next 10 days.

CERTIFICATE OF CONFERENCE

Pursuant to § 502.150(2)(i), I hereby certify that I have conferred in good faith with Respondent in an effort to obtain compliance prior to filing this motion.

/s/ Shanshan Liang
Shanshan Liang, Esq.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 12th day of June 2023, the foregoing Motion to Compel was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Ashley K. Kelley, Esq.
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Federal Maritime Commission
The Honorable Erin M. Wirth
Chief Administrative Law Judge
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/s/ Shanshan Liang
Shanshan Liang, Esq.

EXHIBIT A

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**RESPONDENT STERLING CONTAINER LINE LIMITED'S VERIFIED
RESPONSE TO COMPLAINANT'S FIRST SET OF INTERROGATORIES**

Respondent Sterling Container Line Limited ("Sterling") hereby responds to Complainant SeaFair USA LLC's ("SeaFair" or "Complainant") First Set of Interrogatories (the "Interrogatories") through Naira Rivera (Business Development Director Americas, Sterling), and pursuant to 46 C.F.R. § 502.145, and via undersigned counsel, as follows.

I. DISCOVERY RESPONSE BACKGROUND

Sterling's responses to SeaFair's First Set of Interrogatories are based on discovery available as of the date hereof and diligent investigation by Sterling and its counsel. Further discovery, independent investigation, or other analysis may lead to the discovery of additional information, which may lead to additions or changes to the responses set forth herein. These responses are given without prejudice to Sterling's right to disclose and rely on subsequently discovered information. Further, Sterling's responses and objections are based upon the facts and information now known to it and may not in any way be deemed to be an admission or representation that further facts, information, or witnesses who have knowledge relevant to the subject matter of these interrogatories

do not exist. Sterling expressly reserves the right to alter, supplement, amend, or otherwise modify these responses in any way at any time, including at trial, in light of facts determined to be relevant by Sterling through discovery and further investigation.

These responses are made solely for the purposes of this action, and the fact that Sterling has responded to any of the interrogatories set forth below should not be taken as an admission that Sterling accepts or admits the existence of any facts set forth or assumed by an interrogatory or that such response constitutes admissible evidence.

II. STERLING'S RESPONSES

- 1. Please state the name, address, and contact information of each and every person who answered and/or assisted in answering these interrogatories, and if applicable, the person's official position or relationship with the parties to whom the interrogatories are directed.**

RESPONSE:

- Naira Rivera (naira.rivera@americas.atlanticforwarding.com), Business Development Director Americas, Atlantic Forwarding Group.
- Marc Matschullat (marc.matschullat@bsl.atlanticforwarding.com), Chief Commercial Officer/Chief Procurement Officer of Atlantic Forwarding Group.
- Marco Iulita (marco.iulita@bsl.atlanticforwarding.com), Former CFO of Atlantic Forwarding Ltd.

- 2. Please list the name, telephone number, business address and capacity of each and every person who you believe may have knowledge concerning any of the facts in this lawsuit, and specify the subject matter about which each person has knowledge.**

RESPONSE:

- Naira Rivera
- Marc Matschullat

- Marco Iulita
- Jimmy Deliveliotis
- Priscilla Wong

The above witnesses have information regarding the underlying allegations of the Complaint, and Sterling's defenses, response, and denial thereof. See response to Interrogatory No. 3.

- 3. Please state the name of any and all persons whom you may call as a witness in this action. As to each such witness, please state his or her name, present or last known address, last known home and office or business telephone number, last known place of employment, last known place of employment, job title or capacity and present or last known whereabouts.**

RESPONSE:

- Naira Rivera (naira.rivera@americas.atlanticforwarding.com), Business Development Director Americas, Atlantic Forwarding Group (Grosspeteranlage 29 4052 Basel, Switzerland).
 - Marc Matschullat (marc.matschullat@bsl.atlanticforwarding.com), Chief Commercial Officer/Chief Procurement Officer of Atlantic Forwarding Group (Grosspeteranlage 29 4052 Basel, Switzerland).
 - Jimmy Deliveliotis (Jimmy.Deliveliotis@atlanticforwarding.ca).
 - Priscilla Wong (priscilla.wong@hkg.atlanticforwarding.com).
- 4. Please identify the person or persons who communicated on your behalf with SeaFair in any way regarding SeaFair invoice nos. MIAD048551, MIAD048552, MIAD048553, MIAD048554, MIAD048555, MIAD048556, MIAD048557, MIAD048505, MIAD048511, MIAD048513, MIAD048534, MIAD048535, MIAD048540, MIAD048542, MIAD048544, MIAD048533, MIAD049825, MIAD049826, MIAD049827, MIAD049828, MIAD049829, MIAD049830, MIAD049831, MIAD049832, MIAD049838, MIAD050335, MIAD050336, and/or MIAD049839 and/or the services performed by SeaFair invoiced therein since May 2021 and the email address that the person or persons used for such communication.**

RESPONSE:

Following SeaFair's commencement of the present FMC action:

- Naira Rivera (naira.rivera@americas.atlanticforwarding.com)
- Marc Matschullat (marc.matschullat@bsl.atlanticforwarding.com)
- Marco Iulita (marco.iulita@bsl.atlanticforwarding.com)

Sterling objects to this interrogatory to the extent it seeks discussions between counsel for the parties in this dispute that are not subject to disclosure.

5. Please state the relationship between Sterling and Atlantic.

RESPONSE: Sterling is a non-vessel operating common carrier ("NVOCC") organized under the laws of Hong Kong. Sterling is a registered with the FMC under no. 016481. Atlantic is an ocean transportation intermediary organized under the laws of Switzerland. Atlantic is not registered with FMC. Sterling is an entity in the organizational structure of Atlantic.

6. Please state the relationship between Sterling and MSC.

RESPONSE: Sterling objects to this Interrogatory to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or defenses. Notwithstanding the foregoing objections, Sterling responds that Mediterranean Shipping Company S.A. is a carrier that Sterling sometimes uses in the course of its business operations.

7. Please identify any and all efforts undertaken by Sterling to bill or collect from the shippers and consignees identified on Sterling's house bills of lading after receiving the SeaFair invoices referenced in Interrogatory no. 4 (above).

RESPONSE: Atlantic has not billed or collected from the shippers or consignees

identified on the house bills of lading after receiving the SeaFair invoices referenced in Interrogatory no. 4.

- 8. Please identify any house bills of lading listed in Exhibit 1 to Complainant's Requests for Admissions that Sterling denies issuing (by itself or through Atlantic and/or its affiliates), if any.**

RESPONSE: Sterling objects to this interrogatory to the extent that it seeks information not relevant to SeaFair or Respondents' claims or defenses and is not proportional to the needs of the case.

III. RESERVATION OF RIGHTS

Sterling expressly reserves all, and does not waive any, rights with respect to continuing discovery under the Scheduling Order and FMC Rules, including the right to supplement or amend these responses at any time based on discovery and further investigation.

Sterling's responses herein do not constitute: (1) a waiver of any claims, defenses or positions advanced by Sterling at any time during the pendency of these proceedings; (2) a waiver of the right to object on any ground to the use of said responses or the subject matter of each of the interrogatory requests, in any subsequent proceeding in, or the trial of, this or any other action; (3) a waiver of the right to object on any ground, at any time, to a demand for further responses to these or any other discovery procedures involving or relating to the subject matter of each of SeaFair's discovery requests; or (4) a waiver of the right to object on any ground to these or any other or future discovery responses.

Date: April 24, 2023

Respectfully Submitted,

/s/ Ashley K. Kelley

Ashley K. Kelley, Esq.

Womble Bond Dickinson (US) LLP

5 Exchange Street

PO Box 999 (29402)

Charleston, SC 29401

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Julius H. Bodie, Esq.

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Email: Julius.Bodie@wbd-us.com

*Counsel for Atlantic Forwarding Ltd. and Sterling
Container Line Limited*

VERIFICATION OF STERLING CONTAINER LINE LTD.'S
RESPONSE TO COMPLAINANT'S FIRST SET OF INTERROGATORIES

1. I am Naira Rivera of Sterling Container Line Ltd. ("Sterling").
2. I am authorized to make this verification on behalf of Sterling.
3. I hereby verify that the facts contained in the foregoing Response are true and correct to the best of my knowledge, information, and belief.
4. I verify under penalty of perjury that the foregoing is true and correct.

Date: April 24, 2023

DocuSigned by:
Naira Rivera
268C4BB482A14D2...

Naira Rivera
Business Development Director Americas
naira.rivera@americas.atlanticforwarding.com

Atlantic Forwarding Ltd.
Grosspeteranlage 29
4502 Basel, Switzerland

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 24th day of April 2023, the foregoing Verified Response
was served via electronic mail on:

Complainant
SEAFair USA LLC
C/O LIANG + MOONEY, PLLC
Shanshan Liang, Esq.
sliang@customscourt.com
Counsel for SeaFair USA LLC

/s/ Ashley K. Kelley
Ashley K. Kelley, Esq.

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**RESPONDENT ATLANTIC FORWARDING LTD.'S VERIFIED
RESPONSE TO COMPLAINANT'S FIRST SET OF INTERROGATORIES**

Respondent Atlantic Forwarding Ltd. ("Atlantic") hereby responds to Complainant SeaFair USA LLC's ("SeaFair" or "Complainant") First Set of Interrogatories (the "Interrogatories") through Naira Rivera (Business Development Director Americas, Atlantic), and pursuant to 46 C.F.R. § 502.145, and via undersigned counsel, as follows.

I. DISCOVERY RESPONSE BACKGROUND

Atlantic's responses to SeaFair's First Set of Interrogatories are based on discovery available as of the date hereof and diligent investigation by Atlantic and its counsel. Further discovery, independent investigation, or other analysis may lead to the discovery of additional information, which may lead to additions or changes to the responses set forth herein. These responses are given without prejudice to Atlantic's right to disclose and rely on subsequently discovered information. Further, Atlantic's responses and objections are based upon the facts and information now known to it and may not in any way be deemed to be an admission or representation that further facts, information, or witnesses who have knowledge relevant to the subject matter of these interrogatories

do not exist. Atlantic expressly reserves the right to alter, supplement, amend, or otherwise modify these responses in any way at any time, including at trial, in light of facts determined to be relevant by Atlantic through discovery and further investigation.

These responses are made solely for the purposes of this action, and the fact that Atlantic has responded to any of the interrogatories set forth below should not be taken as an admission that Atlantic accepts or admits the existence of any facts set forth or assumed by an interrogatory or that such response constitutes admissible evidence.

II. ATLANTIC'S RESPONSES

- 1. Please state the name, address, and contact information of each and every person who answered and/or assisted in answering these interrogatories, and if applicable, the person's official position or relationship with the parties to whom the interrogatories are directed.**

RESPONSE:

- Naira Rivera (naira.rivera@americas.atlanticforwarding.com), Business Development Director Americas, Atlantic Forwarding Group.
- Marc Matschullat (marc.matschullat@bsl.atlanticforwarding.com), Chief Commercial Officer/Chief Procurement Officer of Atlantic Forwarding Group.
- Marco Iulita (marco.iulita@bsl.atlanticforwarding.com), Former CFO of Atlantic Forwarding Ltd.

- 2. Please list the name, telephone number, business address and capacity of each and every person who you believe may have knowledge concerning any of the facts in this lawsuit, and specify the subject matter about which each person has knowledge.**

RESPONSE:

- Naira Rivera
- Marc Matschullat

- Marco Iulita
- Jimmy Deliveliotis
- Priscilla Wong

The above witnesses have information regarding the underlying allegations of the Complaint, and Atlantic's defenses, response, and denial thereof. See response to Interrogatory No. 3.

- 3. Please state the name of any and all persons whom you may call as a witness in this action. As to each such witness, please state his or her name, present or last known address, last known home and office or business telephone number, last known place of employment, last known place of employment, job title or capacity and present or last known whereabouts.**

RESPONSE:

- Naira Rivera (naira.rivera@americas.atlanticforwarding.com), Business Development Director Americas, Atlantic Forwarding Group (Grosspeteranlage 29 4052 Basel, Switzerland).
 - Marc Matschullat (marc.matschullat@bsl.atlanticforwarding.com), Chief Commercial Officer/Chief Procurement Officer of Atlantic Forwarding Group (Grosspeteranlage 29 4052 Basel, Switzerland).
 - Jimmy Deliveliotis (Jimmy.Deliveliotis@atlanticforwarding.ca).
 - Priscilla Wong (priscilla.wong@hkg.atlanticforwarding.com).
- 4. Please identify the person or persons who communicated on your behalf with SeaFair in any way regarding SeaFair invoice nos. MIAD048551. MIAD048552, MIAD048553, MIAD048554, MIAD048555, MIAD048556, MIAD048557, MIAD048505, MIAD048511, MIAD048513, MIAD048534, MIAD048535, MIAD048540, MIAD048542, MIAD048544, MIAD048533, MIAD049825, MIAD049826, MIAD049827, MIAD049828, MIAD049829, MIAD049830, MIAD049831, MIAD049832, MIAD049838, MIAD050335, MIAD050336, and/or MIAD049839 and/or the services performed by SeaFair invoiced therein since May 2021 and the email address that the person or persons used for such communication.**

RESPONSE:

Following SeaFair's commencement of the present FMC action:

- Naira Rivera (naira.rivera@americas.atlanticforwarding.com)
- Marc Matschullat (marc.matschullat@bsl.atlanticforwarding.com)
- Marco Iulita (marco.iulita@bsl.atlanticforwarding.com)

Atlantic objects to this interrogatory to the extent it seeks discussions between counsel for the parties in this dispute that are not subject to disclosure.

5. Please state the relationship between Sterling and Atlantic.

RESPONSE: Sterling is a non-vessel operating common carrier ("NVOCC") organized under the laws of Hong Kong. Sterling is a registered with the FMC under no. 016481. Atlantic is an ocean transportation intermediary organized under the laws of Switzerland. Atlantic is not registered with FMC. Sterling is an entity in the organizational structure of Atlantic.

6. Please state the relationship between Atlantic and MSC.

RESPONSE: Atlantic objects to this Interrogatory to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or defenses. Notwithstanding the foregoing objections, Atlantic responds that Mediterranean Shipping Company S.A. is a carrier that Atlantic sometimes uses in the course of its business operations.

7. Please identify any and all efforts undertaken by Atlantic to bill or collect from the shippers and consignees identified on Sterling's house bills of lading after receiving the SeaFair invoices referenced in Interrogatory no. 4 (above).

RESPONSE: Atlantic has not billed or collected from the shippers or consignees

identified on the house bills of lading after receiving the SeaFair invoices referenced in Interrogatory no. 4.

- 8. Please identify any house bills of lading listed in Exhibit 1 to Complainant's Requests for Admissions that Sterling denies issuing (by itself or through Atlantic and/or its affiliates), if any.**

RESPONSE: Atlantic objects to this interrogatory to the extent that it seeks information not relevant to SeaFair or Respondents' claims or defenses and is not proportional to the needs of the case.

III. RESERVATION OF RIGHTS

Atlantic expressly reserves all, and does not waive any, rights with respect to continuing discovery under the Scheduling Order and FMC Rules, including the right to supplement or amend these responses at any time based on discovery and further investigation.

Atlantic's responses herein do not constitute: (1) a waiver of any claims, defenses or positions advanced by Atlantic at any time during the pendency of these proceedings; (2) a waiver of the right to object on any ground to the use of said responses or the subject matter of each of the interrogatory requests, in any subsequent proceeding in, or the trial of, this or any other action; (3) a waiver of the right to object on any ground, at any time, to a demand for further responses to these or any other discovery procedures involving or relating to the subject matter of each of SeaFair's discovery requests; or (4) a waiver of the right to object on any ground to these or any other or future discovery responses.

Date: April 24, 2023

Respectfully Submitted,

/s/ Ashley K. Kelley

Ashley K. Kelley, Esq.

Womble Bond Dickinson (US) LLP

5 Exchange Street

PO Box 999 (29402)

Charleston, SC 29401

Direct Dial: (843) 720-4679

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Womble Bond Dickinson (US) LLP

2001 K Street, NW

Suite 400 South

Washington D.C. 20006

Direct Dial: (202) 857-4552

Email: Julius.Bodie@wbd-us.com

*Counsel for Atlantic Forwarding Ltd. and Sterling
Container Line Limited*

VERIFICATION OF ATLANTIC FORWARDING LTD.'S
RESPONSE TO COMPLAINANT'S FIRST SET OF INTERROGATORIES

1. I am Naira Rivera of Atlantic Forwarding Ltd. ("Atlantic").
2. I am authorized to make this verification on behalf of Atlantic.
3. I hereby verify that the facts contained in the foregoing Response are true and correct to the best of my knowledge, information, and belief.
4. I verify under penalty of perjury that the foregoing is true and correct.

Date: April 24, 2023

DocuSigned by:
Naira Rivera
268C4BB482A14D2...

Naira Rivera
Business Development Director Americas
naira.rivera@americas.atlanticforwarding.com

Atlantic Forwarding Ltd.
Grosspeteranlage 29
4502 Basel, Switzerland

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 24th day of April 2023, the foregoing Verified Response
was served via electronic mail on:

Complainant
SEAFair USA LLC
C/O LIANG + MOONEY, PLLC
Shanshan Liang, Esq.
sliang@customscourt.com
Counsel for SeaFair USA LLC

/s/ Ashley K. Kelley
Ashley K. Kelley, Esq.

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**RESPONDENT STERLING CONTAINER LINE LIMITED'S VERIFIED
RESPONSE TO COMPLAINANT'S SECOND SET OF INTERROGATORIES**

Respondent Sterling Container Line Limited ("Sterling") hereby responds to Complainant SeaFair USA LLC's ("SeaFair" or "Complainant") Second Set of Interrogatories (the "Interrogatories") through Naira Rivera (Business Development Director Americas, Sterling), and pursuant to 46 C.F.R. § 502.145, and via undersigned counsel, as follows.

I. DISCOVERY RESPONSE BACKGROUND

Sterling's responses to SeaFair's Second Set of Interrogatories are based on discovery available as of the date hereof and diligent investigation by Sterling and its counsel. Further discovery, independent investigation, or other analysis may lead to the discovery of additional information, which may lead to additions or changes to the responses set forth herein. These responses are given without prejudice to Sterling's right to disclose and rely on subsequently discovered information. Further, Sterling's responses and objections are based upon the facts and information now known to it and may not in any way be deemed to be an admission or representation that further facts, information, or witnesses who have knowledge relevant to the subject matter of

these interrogatories do not exist. Sterling expressly reserves the right to alter, supplement, amend, or otherwise modify these responses in any way at any time, including at trial, in light of facts determined to be relevant by Sterling through discovery and further investigation.

These responses are made solely for the purposes of this action, and the fact that Sterling has responded to any of the interrogatories set forth below should not be taken as an admission that Sterling accepts or admits the existence of any facts set forth or assumed by an interrogatory or that such response constitutes admissible evidence.

II. STERLING'S RESPONSES

- 1. Please state the name, address, and contact information of each and every person who answered and/or assisted in answering these interrogatories, and if applicable, the person's official position or relationship with the parties to whom the interrogatories are directed**

RESPONSE:

- Daniel Weissenberger (daniel.weissenberger@bsl@atlanticforwarding.com), CEO of Atlantic Forwarding Ltd.
- Marc Matschullat (marc.matschullat@bsl.atlanticforwarding.com), Chief Commercial Officer/Chief Procurement Officer of Atlantic Forwarding Group.
- Christoph Ritt (chris.ritt@bsl.atlanticforwarding.com), Chief Financial Officer of Atlantic Forwarding Ltd.
- Naira Rivera (naira.rivera@americas.atlanticforwarding.com), Business Development Director Americas, Atlantic Forwarding Group.
- Pony Ma (pony.ma@sha.atlanticforwarding.com), Regional Manager Operations and Sales, Atlantic Forwarding (China) Co. Ltd.

- Kitty Wei (kitty.wei@tsn.atlanticforwarding.com), Operation Manager, Atlantic Forwarding (China) Co. Ltd.
- 2. Please identify your corporate structure, including names and addresses of officers, directors and shareholders.**

RESPONSE:

Sterling is a subsidiary of Atlantic Airfreight Systems Ltd. Hongkong & Atlantic Forwarding (China) Limited. Atlantic Airfreight Systems Ltd. & Atlantic Forwarding (China) Limited are 100% subsidiaries of Atlantic Speditions AG Switzerland. In 2021 and 2022, the Directors of Sterling were Marco Iulita and Li Po Wah. The current board of directors for Atlantic Forwarding Group is comprised of Daniel Weissenberger (Chief Executive Officer), Christoph Ritt (Chief Financial Officer), and Marc Matschullat (Chief Commercial Officer and Chief Procurement Officer).

- 3. Your answer to Request No. 4 of SeaFair's First Set of Interrogatories only provided names of the person or persons who communicated on your behalf with SeaFair since the commencement of the present FMC action. Please identify the person or persons who communicated on your behalf with SeaFair in any way regarding SeaFair invoice nos. MIAD048551, MIAD048552, MIAD048553, MIAD048554, MIAD048555, MIAD048556, MIAD048557, MIAD048505, MIAD048511, MIAD048513, MIAD048534, MIAD048535, MIAD048540, MIAD048542, MIAD048544, MIAD048533, MIAD049825, MIAD049826, MIAD049827, MIAD049828, MIAD049829, MIAD049830, MIAD049831, MIAD049832, MIAD049838, MIAD050335, MIAD050336, and/or MIAD049839 and/or the services performed by SeaFair invoiced therein since May 2021 and the email address that the person or persons used for such communication.**

RESPONSE:

- Naira Rivera (naira.rivera@americas.atlanticforwarding.com)
- Marc Matschullat (marc.matschullat@bsl.atlanticforwarding.com)
- Marco Iulita (marco.iulita@bsl.atlanticforwarding.com)
- Yuli Kurniawan (yuli.kurniawan@jkt.atlanticforwarding.com)

- Joris Obrist (joris.obrist@bsl.atlanticforwarding.com)
- Evelyn Chong (evelynn.chong@sin.atlanticforwarding.com)
- Sunny Qian (sunny.qian@sha.atlanticforwarding.com)
- Elton Poon (Elton.poon@shk.atlanticforwarding.com)
- Dara Lai (dara.lai@hkg.atlanticforwarding.com)
- Markus Goei (Markus.Goei@jkt.atlanticforwarding.com)
- Priscilla Wong (priscilla.wong@hkg.atlanticforwarding.com)

- 4. Please state your reason(s) for not attempting to collect the outstanding charges from the consignees and/or shippers identified on Sterling's house bills of lading after receiving the SeaFair invoices referenced in the Interrogatory above.**

RESPONSE:

Sterling objects to this Interrogatory to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Sterling's defenses. The documents produced in this matter speak for themselves.

- 5. Identify all documents you contend support your assertion that you are not liable to Complainant for unpaid destination charges.**

RESPONSE:

Sterling objects to this Interrogatory to the extent it calls for legal conclusions. In response to SeaFair's Interrogatory 5, Sterling identifies any and all documents containing terms and conditions governing the relationship between (i) Atlantic and SeaFair, and (ii) Sterling and SeaFair, including but not limited to the terms and conditions that were produced by Sterling in response to SeaFair's First Set of Requests for Production (including Exhibits 2, 3, and 14) and

the terms and conditions governing the house and master bills of lading produced by Sterling in response to SeaFair's Second Set of Requests for Production (Request 2).

- 6. Please provide a list of house bills of lading, by number, which were issued by Sterling and for which SeaFair was identified as delivery agent in your ACOP system.**

RESPONSE:

Sterling objects to this Request to the extent that it is overbroad, seeks duplicative information, seeks information that is not proportional to the needs of the case, and is too burdensome to answer. Notwithstanding the foregoing objections, Sterling has provided SeaFair the bills of lading identified by SeaFair in its Discovery Responses to SeaFair's Second Set of Requests for Production (Request 1 and Request 5).

- 7. Please identify all master bills of lading, by number, which were issued by MSC and which Sterling was identified as shipper while SeaFair was identified as either forwarding agent or consignee.**

RESPONSE:

Sterling objects to this Request to the extent that it is overbroad, seeks duplicative information, seeks information that is not proportional to the needs of the case, and is too burdensome to answer. Notwithstanding the foregoing objections, Sterling has provided SeaFair the master and house bills of lading identified by SeaFair in its Discovery Responses to SeaFair's Second Set of Requests for Production (Request 1 and Request 5).

- 8. Identify all bank accounts you hold, and for each, identify: a. The financial institution at which the account is held; b. The name(s) of the accountholder(s); and c. The account balance.**

RESPONSE:

Sterling objects to this Interrogatory to the extent it is unlikely to lead to the discovery of relevant

and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Sterling's defenses.

9. Identify all policies of insurance related to the charges invoiced by carriers at destination you have had since January 2021, and for each, state: a. The policy number; b. The type of insurance coverage; and c. The policy limits.

RESPONSE:

Sterling objects to this Interrogatory to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Sterling's defenses.

III. RESERVATION OF RIGHTS

Sterling expressly reserves all, and does not waive any, rights with respect to continuing discovery under the Scheduling Order and FMC Rules, including the right to supplement or amend these responses at any time based on discovery and further investigation.

Sterling's responses herein do not constitute: (1) a waiver of any claims, defenses or positions advanced by Sterling at any time during the pendency of these proceedings; (2) a waiver of the right to object on any ground to the use of said responses or the subject matter of each of the interrogatory requests, in any subsequent proceeding in, or the trial of, this or any other action; (3) a waiver of the right to object on any ground, at any time, to a demand for further responses to these or any other discovery procedures involving or relating to the subject matter of each of SeaFair's discovery requests; or (4) a waiver of the right to object on any ground to these or any other or future discovery responses.

Date: May 31, 2023

Respectfully Submitted,

/s/ Ashley K. Kelley

Ashley K. Kelley, Esq.

Womble Bond Dickinson (US) LLP

5 Exchange Street

PO Box 999 (29402)

Charleston, SC 29401

Direct Dial: (843) 720-4679

Email: Ashley.Kelley@wbd-us.com

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Womble Bond Dickinson (US) LLP

2001 K Street, NW

Suite 400 South

Washington D.C. 20006

Direct Dial: (202) 857-4552

Email: Julius.Bodie@wbd-us.com

*Counsel for Atlantic Forwarding Ltd. and Sterling
Container Line Limited*

VERIFICATION OF STERLING CONTAINER LINE LTD.'S
RESPONSE TO COMPLAINANT'S SECOND SET OF INTERROGATORIES

1. I am Naira Rivera of Sterling Container Line Ltd. ("Sterling").
2. I am authorized to make this verification on behalf of Sterling.
3. I hereby verify that the facts contained in the foregoing Response are true and correct to the best of my knowledge, information, and belief.
4. I verify under penalty of perjury that the foregoing is true and correct.

Date: May 31, 2023

DocuSigned by:
Naira Rivera
268C4BB482A14D2...

Naira Rivera
Business Development Director Americas
naira.rivera@americas.atlanticforwarding.com

Atlantic Forwarding Ltd.
Grosspeteranlage 29
4502 Basel, Switzerland

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 31st day of May 2023, the foregoing Verified Response
was served via electronic mail on:

Complainant
SEAFair USA LLC
C/O LIANG + MOONEY, PLLC
Shanshan Liang, Esq.
sliang@customscourt.com
Counsel for SeaFair USA LLC

/s/ Ashley K. Kelley
Ashley K. Kelley, Esq.

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**RESPONDENT ATLANTIC FORWARDING LTD.'S VERIFIED
RESPONSE TO COMPLAINANT'S SECOND SET OF INTERROGATORIES**

Respondent Atlantic Forwarding Ltd. ("Atlantic") hereby responds to Complainant SeaFair USA LLC's ("SeaFair" or "Complainant") Second Set of Interrogatories (the "Interrogatories") through Naira Rivera (Business Development Director Americas, Atlantic), and pursuant to 46 C.F.R. § 502.145, and via undersigned counsel, as follows.

I. DISCOVERY RESPONSE BACKGROUND

Atlantic's responses to SeaFair's Second Set of Interrogatories are based on discovery available as of the date hereof and diligent investigation by Atlantic and its counsel. Further discovery, independent investigation, or other analysis may lead to the discovery of additional information, which may lead to additions or changes to the responses set forth herein. These responses are given without prejudice to Atlantic's right to disclose and rely on subsequently discovered information. Further, Atlantic's responses and objections are based upon the facts and information now known to it and may not in any way be deemed to be an admission or representation that further facts, information, or witnesses who have knowledge relevant to the subject matter of

these interrogatories do not exist. Atlantic expressly reserves the right to alter, supplement, amend, or otherwise modify these responses in any way at any time, including at trial, in light of facts determined to be relevant by Atlantic through discovery and further investigation.

These responses are made solely for the purposes of this action, and the fact that Atlantic has responded to any of the interrogatories set forth below should not be taken as an admission that Atlantic accepts or admits the existence of any facts set forth or assumed by an interrogatory or that such response constitutes admissible evidence.

II. ATLANTIC'S RESPONSES

- 1. Please state the name, address, and contact information of each and every person who answered and/or assisted in answering these interrogatories, and if applicable, the person's official position or relationship with the parties to whom the interrogatories are directed**

RESPONSE:

- Daniel Weissenberger (daniel.weissenberger@bsl@atlanticforwarding.com), CEO of Atlantic Forwarding Ltd.
- Marc Matschullat (marc.matschullat@bsl.atlanticforwarding.com), Chief Commercial Officer/Chief Procurement Officer of Atlantic Forwarding Group.
- Christoph Ritt (chris.ritt@bsl.atlanticforwarding.com), Chief Financial Officer of Atlantic Forwarding Ltd.
- Naira Rivera (naira.rivera@americas.atlanticforwarding.com), Business Development Director Americas, Atlantic Forwarding Group.
- Pony Ma (pony.ma@sha.atlanticforwarding.com), Regional Manager Operations and Sales, Atlantic Forwarding (China) Co. Ltd.

- Kitty Wei (kitty.wei@tsn.atlanticforwarding.com), Operation Manager, Atlantic Forwarding (China) Co. Ltd.
- 2. Please identify your corporate structure, including names and addresses of officers, directors and shareholders.**

RESPONSE:

Atlantic (Atlantic Forwarding AG) is a Swiss Limited entity (UID: CHE-101.507.822) based in Basel, Switzerland. The current board of directors for Atlantic Forwarding Group is comprised of Daniel Weissenberger (Chief Executive Officer), Christoph Ritt (Chief Financial Officer), and Marc Matschullat (Chief Commercial Officer and Chief Procurement Officer).

- 3. Your answer to Request No. 4 of SeaFair's First Set of Interrogatories only provided names of the person or persons who communicated on your behalf with SeaFair since the commencement of the present FMC action. Please identify the person or persons who communicated on your behalf with SeaFair in any way regarding SeaFair invoice nos. MIAD048551, MIAD048552, MIAD048553, MIAD048554, MIAD048555, MIAD048556, MIAD048557, MIAD048505, MIAD048511, MIAD048513, MIAD048534, MIAD048535, MIAD048540, MIAD048542, MIAD048544, MIAD048533, MIAD049825, MIAD049826, MIAD049827, MIAD049828, MIAD049829, MIAD049830, MIAD049831, MIAD049832, MIAD049838, MIAD050335, MIAD050336, and/or MIAD049839 and/or the services performed by SeaFair invoiced therein since May 2021 and the email address that the person or persons used for such communication.**

RESPONSE:

- Naira Rivera (naira.rivera@americas.atlanticforwarding.com)
- Marc Matschullat (marc.matschullat@bsl.atlanticforwarding.com)
- Marco Iulita (marco.iulita@bsl.atlanticforwarding.com)
- Yuli Kurniawan (yuli.kurniawan@jkt.atlanticforwarding.com)
- Joris Obrist (joris.obrist@bsl.atlanticforwarding.com)
- Evelyn Chong (evelynn.chong@sin.atlanticforwarding.com)

- Sunny Qian (sunny.qian@sha.atlanticforwarding.com)
- Elton Poon (Elton.poon@shk.atlanticforwarding.com)
- Dara Lai (dara.lai@hkg.atlanticforwarding.com)
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- Priscilla Wong (priscilla.wong@hkg.atlanticforwarding.com)

- 4. Please state your reason(s) for not attempting to collect the outstanding charges from the consignees and/or shippers identified on Sterling's house bills of lading after receiving the SeaFair invoices referenced in the Interrogatory above.**

RESPONSE:

Atlantic objects to this Interrogatory to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Atlantic's defenses. The documents produced in this matter speak for themselves.

- 5. Identify all documents you contend support your assertion that you are not liable to Complainant for unpaid destination charges.**

RESPONSE:

Atlantic objects to this Interrogatory to the extent it calls for legal conclusions. In response to SeaFair's Interrogatory 5, Atlantic identifies any and all documents containing terms and conditions governing the relationship between (i) Atlantic and SeaFair, and (ii) Sterling and SeaFair, including but not limited to the terms and conditions that were produced by Atlantic in Response to SeaFair's First Set of Requests for Production (including Exhibits 2, 3, and 14) and the terms and conditions governing the house and master bills of lading produced by Atlantic in response to SeaFair's Second Set of Requests for Production (Request 2).

- 6. Please provide a list of house bills of lading, by number, which were issued by Sterling and for which SeaFair was identified as delivery agent in your ACOP system.**

RESPONSE:

Atlantic objects to this Request to the extent that it is overbroad, seeks duplicative information, seeks information that is not proportional to the needs of the case, and is too burdensome to answer. Notwithstanding the foregoing objections, Atlantic has provided SeaFair the bills of lading identified by SeaFair in its Discovery Responses to SeaFair's Second Set of Requests for Production (Request 1 and Request 5).

- 7. Please identify all master bills of lading, by number, which were issued by MSC and which Sterling was identified as shipper while SeaFair was identified as either forwarding agent or consignee.**

RESPONSE:

Atlantic objects to this Request to the extent that it is overbroad, seeks duplicative information, seeks information that is not proportional to the needs of the case, and is too burdensome to answer. Notwithstanding the foregoing objections, Atlantic has provided SeaFair the master and house bills of lading identified by SeaFair in its Discovery Responses to SeaFair's Second Set of Requests for Production (Request 1 and Request 5).

- 8. Identify all bank accounts you hold, and for each, identify: a. The financial institution at which the account is held; b. The name(s) of the accountholder(s); and c. The account balance.**

RESPONSE:

Atlantic objects to this Interrogatory to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Atlantic's defenses.

9. Identify all policies of insurance related to the charges invoiced by carriers at destination you have had since January 2021, and for each, state: a. The policy number; b. The type of insurance coverage; and c. The policy limits.

RESPONSE:

Atlantic objects to this Interrogatory to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Atlantic's defenses.

III. RESERVATION OF RIGHTS

Atlantic expressly reserves all, and does not waive any, rights with respect to continuing discovery under the Scheduling Order and FMC Rules, including the right to supplement or amend these responses at any time based on discovery and further investigation.

Atlantic's responses herein do not constitute: (1) a waiver of any claims, defenses or positions advanced by Atlantic at any time during the pendency of these proceedings; (2) a waiver of the right to object on any ground to the use of said responses or the subject matter of each of the interrogatory requests, in any subsequent proceeding in, or the trial of, this or any other action; (3) a waiver of the right to object on any ground, at any time, to a demand for further responses to these or any other discovery procedures involving or relating to the subject matter of each of SeaFair's discovery requests; or (4) a waiver of the right to object on any ground to these or any other or future discovery responses.

Date: May 31, 2023

Respectfully Submitted,

/s/ Ashley K. Kelley

Ashley K. Kelley, Esq.

Womble Bond Dickinson (US) LLP

5 Exchange Street

PO Box 999 (29402)

Charleston, SC 29401

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*Counsel for Atlantic Forwarding Ltd. and Sterling
Container Line Limited*

VERIFICATION OF ATLANTIC FORWARDING LTD.'S
RESPONSE TO COMPLAINANT'S SECOND SET OF INTERROGATORIES

1. I am Naira Rivera of Atlantic Forwarding Ltd. ("Atlantic").
2. I am authorized to make this verification on behalf of Atlantic.
3. I hereby verify that the facts contained in the foregoing Response are true and correct to the best of my knowledge, information, and belief.
4. I verify under penalty of perjury that the foregoing is true and correct.

Date: May 31, 2023

DocuSigned by:
Naira Rivera
268C4BB482A14D2...

Naira Rivera
Business Development Director Americas
naira.rivera@americas.atlanticforwarding.com

Atlantic Forwarding Ltd.
Grosspeteranlage 29
4502 Basel, Switzerland

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 31st day of May 2023, the foregoing Verified Response
was served via electronic mail on:

Complainant
SEAFair USA LLC
C/O LIANG + MOONEY, PLLC
Shanshan Liang, Esq.
sliang@customscourt.com
Counsel for SeaFair USA LLC

/s/ Ashley K. Kelley
Ashley K. Kelley, Esq.

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**RESPONDENT STERLING CONTAINER LINE LIMITED'S RESPONSE TO
COMPLAINANT'S FIRST REQUEST TO PRODUCE DOCUMENTS**

Respondent Sterling Container Line Limited ("Sterling"), through undersigned counsel, hereby responds to Complainant SeaFair USA LLC's ("SeaFair" or "Complainant") First Request to Produce Documents pursuant to 46 C.F.R. § 502.146 as follows.

I. DISCOVERY RESPONSE BACKGROUND

Sterling's responses to SeaFair's First Set of Requests to Produce Documents are based on discovery available as of the date hereof and diligent investigation by Sterling and its counsel. Further discovery, independent investigation, or other analysis may lead to the discovery of additional information, which may lead to additions or changes to the responses set forth herein. These responses are given without prejudice to Sterling's right to disclose and rely on subsequently discovered information. Further, Sterling's responses and objections are based upon the facts and information now known to it and may not in any way be deemed to be an admission or representation that further facts, information, or witnesses who have knowledge relevant to the subject matter of these requests do not exist. The fact that Sterling has responded to any of the demands set forth

herein should not be taken as an admission that Sterling accepts or admits the existence of any facts set forth or assumed by such demand or that such response constitutes admissible evidence. Sterling expressly reserves the right to alter, supplement, amend, or otherwise modify these responses in any way at any time, including at trial, in light of facts determined to be relevant by Sterling through discovery and further investigation.

II. GENERAL OBJECTIONS

In addition to the objections which are specifically set forth below in response to Complainant's First Request for Production (the "Requests"), Sterling objects to the Requests on the following grounds:

1. Sterling objects to each demand to the extent it attempts or purports to require disclosure of confidential communications between attorney and client, or the disclosure of documents or information subject to and protected by the prohibition against discovery of attorney work product. The inadvertent disclosure of any such information shall not constitute a waiver of any privilege or of any right which Sterling may have thought it objects to the use of such information.

2. Sterling objects to each demand to the extent it seeks information beyond the scope of permissible discovery and seeks information which is neither relevant to the subject matter of this action nor reasonably calculated to lead to the discovery of admissible evidence.

3. Sterling objects to each demand to the extent it attempts to require the disclosure of confidential settlement communications between the parties.

Subject to the foregoing objections and the specific objections set forth below, Sterling responds as follows.

III. STERLING'S RESPONSE

Complainant Request No. 1: Please provide all documents related to the services SeaFair performed for you and/or Atlantic from May 2021 to present.

Response: Sterling objects to this request on the grounds that it is overbroad, vague, seeks duplicative information, and seeks information that is not proportional to the needs of the case. It is unclear what “services” are contemplated by this request. Notwithstanding the foregoing, documents responsive to this request are located in Discovery Exhibit 13.

Complainant Request No. 2: Please provide all documents identified in Respondents’ Initial Disclosures dated January 23, 2023, including but not limited to the documents identified in Section (2) of Respondents’ Initial Disclosures.

Response: Documents responsive to this request are located in Discovery Exhibit Nos. 1-15.

Complainant Request No. 3: Please provide all master bills of lading in which either Atlantic or Sterling was the shipper and/or consignee and SeaFair was the consignee and/or notify party.

Response: Sterling objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant.

Complainant Request No. 4: Please provide the bill of lading terms and conditions for the master bills of lading corresponding to Complainant Request No. 3.

Response: Documents responsive to this request are located in Discovery Exhibit 14.

Complainant Request No. 5: Please provide all invoices you received from the carriers of the master bills of lading corresponding to Complainant Request No. 3 for services and/or charges related to the shipments carried under those bills of lading.

Response: See response to Request No. 3.

Complainant Request No. 6: Please provide all house bills of lading corresponding to the master bills of lading corresponding to Complainant Request No. 3.

Response: See response to Request No. 3.

Complainant Request No. 7: Please provide the bill of lading terms and conditions for the house bills of lading corresponding to Complainant Request No. 6.

Response: Documents responsive to this request are located in Discovery Exhibit 14.

Complainant Request No. 8: Please provide all invoices you issued to your customers, shippers, and/or consignees who were the merchants of the house bills of lading provided pursuant to Complainant Request No. 6 for services and/or charges related to the shipments carried under those bills of lading.

Response: Sterling objects to this request on the grounds that it is overbroad, vague, seeks duplicative information, and seeks information that is not proportional to the needs of the case.

Complainant Request No. 9: Please provide all documents that support your denial of paragraph 5 of the Complaint.

Response: Documents responsive to this request are located in Discovery Exhibit 2.

Complainant Request No. 10: Please provide all documents relating to the allegations set forth in Paragraph 7 of the Respondents. (Verified Answer and Defenses to Complaint par. 7: “Respondents offered to pay SeaFair \$5,500.00 in connection with the following SeaFair invoices: (i) MIAD049648 (\$2,530.00); (ii) MIAD049649 (\$2,695.00); and (iii) MIAD049650 (\$275.00).” You alleged that “SeaFair did not, and has not, provided payment transmission details and accordingly declined to accept payment”).

Response: Sterling objects to this request to the extent it seeks confidential settlement information already in SeaFair’s possession. Notwithstanding the foregoing, and without waiving any such privilege, documents responsive to this request are located in Discovery Exhibit No. 10. To the extent SeaFair intends to rely on any such privileged documents, Sterling demands that it notifies Sterling in advance and seeks a protective order (or allows Sterling sufficient time to seek a protective order) before disclosing such information.

Complainant Request No. 11: Please provide all documents relating to the allegations set forth in Paragraph 11 of the Verified Answer and Defenses to Complaint, including but not limited to any and all documents evidencing and relating to alleged “accounting discrepancies and inaccuracies” by any entity (Verified Answer and Defenses to Complaint par. 11: “SeaFair’s First Claim contained numerous factual and accounting discrepancies and inaccuracies. Specifically, SeaFair provided inaccurate invoice amounts and incorrectly identified Atlantic as due and owing such inaccurate amounts. On March 9, 2022, Atlantic made a payment of \$115,417.05 to SeaFair in connection with the accurate invoices identified in the First Claim. Counsel for Atlantic responded to the First Claim on or around March 21, 2022 requesting confirmation of SeaFair’s receipt of payment and identifying certain SeaFair invoices as in dispute, due to SeaFair’s inaccurate and incorrect documentation.”).

Response: Sterling objects to this request to the extent it seeks confidential settlement information already in SeaFair’s possession. Notwithstanding the foregoing, and without waiving any such privilege, documents responsive to this request are located in Discovery Exhibits Nos. 1, 4, 5, 6, 10, 11, and 15. To the extent SeaFair intends to rely on any such privileged documents, Sterling demands that it notifies Sterling in advance and seeks a protective order (or allows Sterling sufficient time to seek a protective order) before disclosing such information.

Complainant Request No. 12: Please provide all documents relating to the allegations set forth in Paragraph 14 of the Verified Answer and Defenses to Complaint, including all documents, accounting records, and information relating to the allegations referenced therein.

Response: Sterling objects to this request to the extent it seeks confidential settlement information already in SeaFair’s possession. Notwithstanding the foregoing, and without waiving any such privilege, documents responsive to this request are located in Discovery Exhibits Nos. 8, 9, 10, 11, and 15. To the extent SeaFair intends to rely on any such privileged documents, Sterling demands that it notifies Sterling in advance and seeks a protective order (or allows Sterling sufficient time to seek a protective order) before disclosing such information.

Complainant Request No. 13: Please provide all documents relating to the allegations set forth in Paragraph 16 of the Verified Answer and Defenses to Complaint, including all documents, accounting records, and information relating to the destination charges and document turnover fees referenced therein.

Response: Documents responsive to this request are located in Discovery Exhibit No. 7.

Complainant Request No. 14: Please provide all documents relating to the allegations set forth in Paragraphs 18 of the Verified Answer and Defenses to Complaint.

Response: Sterling objects to this request to the extent it seeks confidential settlement information already in the possession of, known to, or otherwise equally available to SeaFair. Notwithstanding the foregoing, and without waiving any such privilege, documents responsive to this request are located in Discovery Exhibits Nos. 8, 9, 10, 11 and 15. To the extent SeaFair intends to rely on any such privileged documents, Sterling demands that it notifies Sterling in advance and seeks a protective order (or allows Sterling sufficient time to seek a protective order) before disclosing such information.

Complainant Request No. 15: Please provide documents related to your electronic data and document retention policies for the relevant time period.

Response: Sterling objects to this request on the grounds that it is overbroad and vague. Sterling objects to this request on the grounds that it seeks irrelevant information and information that is not proportional to the needs of the case.

Complainant Request No. 16: Please provide all working group lists, organization charts, directories, or other documents sufficient to identify individuals and entities with knowledge of the facts which serve as the basis for the Verified Answer and Defenses to Complaint.

Response: Sterling objects to this request on the grounds that it is overly broad, vague, irrelevant, has already been produced in Sterling's discovery responses (*e.g.*, Sterling's Responses to Complainant's First Request for Interrogatories), and seeks information that is not proportional to the needs of the case.

Complainant Request No. 17: Please provide all documents to support your First Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 18: Please provide all documents to support your Second Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 19: Please provide all documents to support your Third Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 20: Please provide all documents to support your Fourth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 21: Please provide all documents to support your Fifth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 22: Please provide all documents to support your Sixth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 23: Please provide all documents to support your Seventh Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 24: Please provide all documents to support your Eighth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 25: Please provide all documents to support your Ninth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 26: Please provide all documents to support your Tenth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 27: Please provide all documents to support your Eleventh Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 28: Please provide all documents to support your Twelfth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 29: Please provide all documents to support your Thirteenth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 30: Please provide all documents to support your Fourteenth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 31: Please provide all documents to support your Fifteenth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 32: Please provide all documents to support your Sixteenth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 33: Please provide all documents to support your Seventeenth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 34: Please provide all documents to support your Eighteenth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 35: Please provide all documents to support your Nineteenth Affirmative defense alleged in your Answer.

Response: Sterling objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

IV. RESERVATION OF RIGHTS

Sterling expressly reserves all, and does not waive any, rights with respect to continuing discovery under the Scheduling Order and FMC Rules, including the right to supplement or amend these responses at any time based on discovery and further investigation. Sterling's responses herein do not constitute: (1) a waiver of any claims, defenses or positions advanced by Sterling at any time during the pendency of these proceedings; (2) a waiver of the right to object on any ground to the use of said responses or the subject matter of each of the requests for admission in any subsequent proceeding in, or the trial of, this or any other action; (3) a waiver of the right to object on any ground, at any time, to a demand for further responses to these or any other discovery procedures involving or relating to the subject matter of each of SeaFair's discovery requests; or (4) a waiver of the right to object on any ground to these or any other or future discovery responses.

Date: April 25, 2023

[Signature Page Follows]

Respectfully Submitted,

/s/ Ashley K. Kelley

Ashley K. Kelley, Esq.
(SC #78013; US District Court for the
District of South Carolina #10369)

Womble Bond Dickinson (US) LLP

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Washington D.C. 20006

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Email: Julius.Bodie@wbd-us.com

*Counsel for Atlantic Forwarding Ltd. and Sterling
Container Line Limited*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 25th day of April 2023, the foregoing Response was served via electronic mail on:

Complainant
SEAFair USA LLC
C/O LIANG + MOONEY, PLLC
Shanshan Liang, Esq.
sliang@customscourt.com
Counsel for SeaFair USA LLC

/s/ Ashley K. Kelley
Ashley K. Kelley, Esq.

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**RESPONDENT ATLANTIC FORWARDING LTD.'S RESPONSE
TO COMPLAINANT'S FIRST REQUEST TO PRODUCE DOCUMENTS**

Respondent Atlantic Forwarding Ltd. ("Atlantic"), through undersigned counsel, hereby responds to Complainant SeaFair USA LLC's ("SeaFair" or "Complainant") First Request to Produce Documents pursuant to 46 C.F.R. § 502.146 as follows.

I. DISCOVERY RESPONSE BACKGROUND

Atlantic's responses to SeaFair's First Set of Requests to Produce Documents are based on discovery available as of the date hereof and diligent investigation by Atlantic and its counsel. Further discovery, independent investigation, or other analysis may lead to the discovery of additional information, which may lead to additions or changes to the responses set forth herein. These responses are given without prejudice to Atlantic's right to disclose and rely on subsequently discovered information. Further, Atlantic's responses and objections are based upon the facts and information now known to it and may not in any way be deemed to be an admission or representation that further facts, information, or witnesses who have knowledge relevant to the subject matter of these requests do not exist. The fact that Atlantic has responded to any of the demands set forth

herein should not be taken as an admission that Atlantic accepts or admits the existence of any facts set forth or assumed by such demand or that such response constitutes admissible evidence. Atlantic expressly reserves the right to alter, supplement, amend, or otherwise modify these responses in any way at any time, including at trial, in light of facts determined to be relevant by Atlantic through discovery and further investigation.

II. GENERAL OBJECTIONS

In addition to the objections which are specifically set forth below in response to Complainant's First Request for Production (the "Requests"), Atlantic objects to the Requests on the following grounds:

1. Atlantic objects to each demand to the extent it attempts or purports to require disclosure of confidential communications between attorney and client, or the disclosure of documents or information subject to and protected by the prohibition against discovery of attorney work product. The inadvertent disclosure of any such information shall not constitute a waiver of any privilege or of any right which Atlantic may have thought it objects to the use of such information.

2. Atlantic objects to each demand to the extent it seeks information beyond the scope of permissible discovery and seeks information which is neither relevant to the subject matter of this action nor reasonably calculated to lead to the discovery of admissible evidence.

3. Atlantic objects to each demand to the extent it attempts to require the disclosure of confidential settlement communications between the parties.

Subject to the foregoing objections and the specific objections set forth below, Atlantic responds as follows.

III. ATLANTIC'S RESPONSE

Complainant Request No. 1: Please provide all documents related to the services SeaFair performed for you and/or Atlantic from May 2021 to present.

Response: Atlantic objects to this request on the grounds that it is overbroad, vague, seeks duplicative information, and seeks information that is not proportional to the needs of the case. It is unclear what “services” are contemplated by this request. Notwithstanding the foregoing, documents responsive to this request are located in Discovery Exhibit 13.

Complainant Request No. 2: Please provide all documents identified in Respondents’ Initial Disclosures dated January 23, 2023, including but not limited to the documents identified in Section (2) of Respondents’ Initial Disclosures.

Response: Documents responsive to this request are located in Discovery Exhibit Nos. 1-15.

Complainant Request No. 3: Please provide all master bills of lading in which either Atlantic or Sterling was the shipper and/or consignee and SeaFair was the consignee and/or notify party.

Response: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant.

Complainant Request No. 4: Please provide the bill of lading terms and conditions for the master bills of lading corresponding to Complainant Request No. 3.

Response: Documents responsive to this request are located in Discovery Exhibit 14.

Complainant Request No. 5: Please provide all invoices you received from the carriers of the master bills of lading corresponding to Complainant Request No. 3 for services and/or charges related to the shipments carried under those bills of lading.

Response: See response to Request No. 3.

Complainant Request No. 6: Please provide all house bills of lading corresponding to the master bills of lading corresponding to Complainant Request No. 3.

Response: See response to Request No. 3.

Complainant Request No. 7: Please provide the bill of lading terms and conditions for the house bills of lading corresponding to Complainant Request No. 6.

Response: Documents responsive to this request are located in Discovery Exhibit 14.

Complainant Request No. 8: Please provide all invoices you issued to your customers, shippers, and/or consignees who were the merchants of the house bills of lading provided pursuant to Complainant Request No. 6 for services and/or charges related to the shipments carried under those bills of lading.

Response: Atlantic objects to this request on the grounds that it is overbroad, vague, seeks duplicative information, and seeks information that is not proportional to the needs of the case. See response to Request No. 3.

Complainant Request No. 9: Please provide all documents that support your denial of paragraph 5 of the Complaint.

Response: Documents responsive to this request are located in Discovery Exhibit 2.

Complainant Request No. 10: Please provide all documents relating to the allegations set forth in Paragraph 7 of the Respondents. (Verified Answer and Defenses to Complaint par. 7: “Respondents offered to pay SeaFair \$5,500.00 in connection with the following SeaFair invoices: (i) MIAD049648 (\$2,530.00); (ii) MIAD049649 (\$2,695.00); and (iii) MIAD049650 (\$275.00).” You alleged that “SeaFair did not, and has not, provided payment transmission details and accordingly declined to accept payment”).

Response: Atlantic objects to this request to the extent it seeks confidential settlement information already in SeaFair’s possession. Notwithstanding the foregoing, and without waiving any such privilege, documents responsive to this request are located in Discovery Exhibit No. 10. To the extent SeaFair intends to rely on any such privileged documents, Atlantic demands that it notifies Atlantic in advance and seeks a protective order (or allows Atlantic sufficient time to seek a protective order) before disclosing such information.

Complainant Request No. 11: Please provide all documents relating to the allegations set forth in Paragraph 11 of the Verified Answer and Defenses to Complaint, including but not limited to any and all documents evidencing and relating to alleged “accounting discrepancies and inaccuracies” by any entity (Verified Answer and Defenses to Complaint par. 11: “SeaFair’s First Claim contained numerous factual and accounting discrepancies and inaccuracies. Specifically, SeaFair provided inaccurate invoice amounts and incorrectly identified Atlantic as due and owing such inaccurate amounts. On March 9, 2022, Atlantic made a payment of \$115,417.05 to SeaFair in connection with the accurate invoices identified in the First Claim. Counsel for Atlantic responded to the First Claim on or around March 21, 2022 requesting confirmation of SeaFair’s receipt of payment and identifying certain SeaFair invoices as in dispute, due to SeaFair’s inaccurate and incorrect documentation.”).

Response: Atlantic objects to this request to the extent it seeks confidential settlement information already in SeaFair’s possession. Notwithstanding the foregoing, and without waiving any such privilege, documents responsive to this request are located in Discovery Exhibits Nos. 1, 4, 5, 6, 10, 11, and 15. To the extent SeaFair intends to rely on any such privileged documents, Atlantic demands that it notifies Atlantic in advance and seeks a protective order (or allows Atlantic sufficient time to seek a protective order) before disclosing such information.

Complainant Request No. 12: Please provide all documents relating to the allegations set forth in Paragraph 14 of the Verified Answer and Defenses to Complaint, including all documents, accounting records, and information relating to the allegations referenced therein.

Response: Atlantic objects to this request to the extent it seeks confidential settlement information already in SeaFair’s possession. Notwithstanding the foregoing, and without waiving any such privilege, documents responsive to this request are located in Discovery Exhibits Nos. 8, 9, 10, 11, and 15. To the extent SeaFair intends to rely on any such privileged documents, Atlantic demands that it notifies Atlantic in advance and seeks a protective order (or allows Atlantic sufficient time to seek a protective order) before disclosing such information.

Complainant Request No. 13: Please provide all documents relating to the allegations set forth in Paragraph 16 of the Verified Answer and Defenses to Complaint, including all documents, accounting records, and information relating to the destination charges and document turnover fees referenced therein.

Response: Documents responsive to this request are located in Discovery Exhibit No. 7.

Complainant Request No. 14: Please provide all documents relating to the allegations set forth in Paragraphs 18 of the Verified Answer and Defenses to Complaint.

Response: Atlantic objects to this request to the extent it seeks confidential settlement information already in the possession of, known to, or otherwise equally available to SeaFair. Notwithstanding the foregoing, and without waiving any such privilege, documents responsive to this request are located in Discovery Exhibits Nos. 8, 9, 10, 11 and 15. To the extent SeaFair intends to rely on any such privileged documents, Atlantic demands that it notifies Atlantic in advance and seeks a protective order (or allows Atlantic sufficient time to seek a protective order) before disclosing such information.

Complainant Request No. 15: Please provide documents related to your electronic data and document retention policies for the relevant time period.

Response: Atlantic objects to this request on the grounds that it is overbroad and vague. Atlantic objects to this request on the grounds that it seeks irrelevant information and information that is not proportional to the needs of the case.

Complainant Request No. 16: Please provide all working group lists, organization charts, directories, or other documents sufficient to identify individuals and entities with knowledge of the facts which serve as the basis for the Verified Answer and Defenses to Complaint.

Response: Atlantic objects to this request on the grounds that it is overly broad, vague, irrelevant, has already been produced in Atlantic's discovery responses (*e.g.*, Atlantic's Responses to Complainant's First Request for Interrogatories), and seeks information that is not proportional to the needs of the case.

Complainant Request No. 17: Please provide all documents to support your First Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 18: Please provide all documents to support your Second Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 19: Please provide all documents to support your Third Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 20: Please provide all documents to support your Fourth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 21: Please provide all documents to support your Fifth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 22: Please provide all documents to support your Sixth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 23: Please provide all documents to support your Seventh Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 24: Please provide all documents to support your Eighth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 25: Please provide all documents to support your Ninth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion, and further the only responsive document would be Complainant's Complaint.

Complainant Request No. 26: Please provide all documents to support your Tenth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 27: Please provide all documents to support your Eleventh Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 28: Please provide all documents to support your Twelfth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 29: Please provide all documents to support your Thirteenth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 30: Please provide all documents to support your Fourteenth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 31: Please provide all documents to support your Fifteenth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 32: Please provide all documents to support your Sixteenth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 33: Please provide all documents to support your Seventeenth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 34: Please provide all documents to support your Eighteenth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

Complainant Request No. 35: Please provide all documents to support your Nineteenth Affirmative defense alleged in your Answer.

Response: Atlantic objects to this request on the grounds that it calls for a legal argument and conclusion. Notwithstanding the foregoing, see document production.

IV. RESERVATION OF RIGHTS

Atlantic expressly reserves all, and does not waive any, rights with respect to continuing discovery under the Scheduling Order and FMC Rules, including the right to supplement or amend these responses at any time based on discovery and further investigation. Atlantic's responses herein do not constitute: (1) a waiver of any claims, defenses or positions advanced by Atlantic at any time during the pendency of these proceedings; (2) a waiver of the right to object on any ground to the use of said responses or the subject matter of each of the requests for admission in any subsequent proceeding in, or the trial of, this or any other action; (3) a waiver of the right to object on any ground, at any time, to a demand for further responses to these or any other discovery procedures involving or relating to the subject matter of each of SeaFair's discovery requests; or (4) a waiver of the right to object on any ground to these or any other or future discovery responses.

Date: April 25, 2023

[Signature Page Follows]

Respectfully Submitted,

/s/ Ashley K. Kelley

Ashley K. Kelley, Esq.

(SC #78013; US District Court for the
District of South Carolina #10369)

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*Counsel for Atlantic Forwarding Ltd. and Sterling
Container Line Limited*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 25th day of April 2023, the foregoing Response was served via electronic mail on:

Complainant
SEAFair USA LLC
C/O LIANG + MOONEY, PLLC
Shanshan Liang, Esq.
sliang@customscourt.com
Counsel for SeaFair USA LLC

/s/ Ashley K. Kelley
Ashley K. Kelley, Esq.

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFAIR USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**RESPONDENT STERLING CONTAINER LINE LIMITED'S RESPONSE TO
COMPLAINANT'S SECOND REQUEST TO PRODUCE DOCUMENTS**

Respondent Sterling Container Line Limited ("Sterling"), through undersigned counsel, hereby responds to Complainant SeaFair USA LLC's ("SeaFair" or "Complainant") Second Request to Produce Documents pursuant to 46 C.F.R. § 502.146 as follows.

I. DISCOVERY RESPONSE BACKGROUND

Sterling's responses to SeaFair's Second Set of Requests to Produce Documents are based on discovery available as of the date hereof and diligent investigation by Sterling and its counsel. Further discovery, independent investigation, or other analysis may lead to the discovery of additional information, which may lead to additions or changes to the responses set forth herein. These responses are given without prejudice to Sterling's right to disclose and rely on subsequently discovered information. Further, Sterling's responses and objections are based upon the facts and information now known to it and may not in any way be deemed to be an admission or representation that further facts, information, or witnesses who have knowledge relevant to the subject matter of these requests do not exist. The fact that Sterling has responded to any of the demands set forth

herein should not be taken as an admission that Sterling accepts or admits the existence of any facts set forth or assumed by such demand or that such response constitutes admissible evidence. Sterling expressly reserves the right to alter, supplement, amend, or otherwise modify these responses in any way at any time, including at trial, in light of facts determined to be relevant by Sterling through discovery and further investigation.

II. GENERAL OBJECTIONS

In addition to the objections which are specifically set forth below in response to Complainant's Second Request for Production (the "Requests"), Sterling objects to the Requests on the following grounds:

1. Sterling objects to each demand to the extent it attempts or purports to require disclosure of confidential communications between attorney and client, or the disclosure of documents or information subject to and protected by the prohibition against discovery of attorney work product. The inadvertent disclosure of any such information shall not constitute a waiver of any privilege or of any right which Sterling may have thought it objects to the use of such information.

2. Sterling objects to each demand to the extent it seeks information beyond the scope of permissible discovery and seeks information which is neither relevant to the subject matter of this action nor reasonably calculated to lead to the discovery of admissible evidence.

3. Sterling objects to each demand to the extent it attempts to require the disclosure of confidential settlement communications between the parties.

Subject to the foregoing objections and the specific objections set forth below, Sterling responds as follows.

III. STERLING'S RESPONSE

Complainant Request No. 1: Please provide copies of master bills of lading nos. MEDUDL407696, MEDUDL460729, MEDUDL472427, MEDUDL478333, MEDUDL529242, MEDUDL507933, MEDUDL507982, MEDUDL508931, MEDUDL522775, MEDUDL546311, MEDUDL555965, MEDUDL574784, MEDUDL590384, MEDUDL559397, MEDUDL624175, MEDUDL638472, MEDUDL638480, MEDUDL574297, MEDUDL574313, and MEDUDL574321.

Response: Documents responsive to this request are located in Discovery Exhibit 1.

Complainant Request No. 2: Please provide the bill of lading terms and conditions for the master bills of lading requested in Request No. 1.

Response: Documents responsive to this request are located in Discovery Exhibit 2.

Complainant Request No. 3: Please provide copies of all master bills of lading listed in Exhibit 1 to these Requests for Production (in Excel format), if not already produced in response to Request 1 above.

Response: Sterling objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant. Notwithstanding the foregoing, Documents responsive to this request are located in Discovery Exhibit 1.

Complainant Request No. 4: Please provide a list of master bills of lading, by number, which were issued by MSC and in which Sterling was identified as shipper and SeaFair was identified as either forwarding agent or consignee.

Response: Sterling objects to this request on the grounds that it that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant.

Complainant Request No. 5: Please provide copies of house bills of lading corresponding to master bills of lading nos. MEDUDL407696, MEDUDL460729, MEDUDL472427, MEDUDL478333, MEDUDL529242, MEDUDL507933, MEDUDL507982, MEDUDL508931, MEDUDL522775, MEDUDL546311, MEDUDL555965, MEDUDL574784, MEDUDL590384, MEDUDL559397, MEDUDL624175, MEDUDL638472, MEDUDL638480, MEDUDL574297, MEDUDL574313, and MEDUDL574321.

Response: Documents responsive to this request are located in Discovery Exhibit 1.

Complainant Request No. 6: Please provide copies of all house bills of lading listed in Exhibit 2 to these Requests for Production (in Excel format), if not already produced in response to Request 5 above.

Response: Sterling objects to this request on the grounds that it that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant. Notwithstanding the foregoing, Documents responsive to this request are located in Discovery Exhibit 1.

Complainant Request No. 7: Please provide a list of house bills of lading, by number, which were issued by Sterling and for which SeaFair was identified as delivery agent in your ACOP system.

Response: Sterling objects to this request on the grounds that it that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant.

Complainant Request No. 8: Please provide an organization chart of your company.

Response: No such documents were identified after diligent search and review, but Sterling reserves the right to supplement this response and will provide any responsive documents identified in the future.

Complainant Request No. 9: Please provide all agency agreements relevant to this action executed between you and Atlantic.

Response: Based on information and belief, none such agreements exist outside of what has already been produced to SeaFair by Sterling.

Complainant Request No. 10: Please provide a copy of your tariff published in accordance with FMC regulations.

Response: Documents responsive to this request are located in Discovery Exhibit 3.

IV. RESERVATION OF RIGHTS

Sterling expressly reserves all, and does not waive any, rights with respect to continuing discovery under the Scheduling Order and FMC Rules, including the right to supplement or amend these responses at any time based on discovery and further investigation. Sterling's responses herein do not constitute: (1) a waiver of any claims, defenses or positions advanced by Sterling at any time during the pendency of these proceedings; (2) a waiver of the right to object on any ground to the use of said responses or the subject matter of each of the requests for admission in

any subsequent proceeding in, or the trial of, this or any other action; (3) a waiver of the right to object on any ground, at any time, to a demand for further responses to these or any other discovery procedures involving or relating to the subject matter of each of SeaFair's discovery requests; or (4) a waiver of the right to object on any ground to these or any other or future discovery responses.

Date: May 31, 2023

Respectfully Submitted,

/s/ Ashley K. Kelley

Ashley K. Kelley, Esq.

(SC #78013; US District Court for the
District of South Carolina #10369)

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*Counsel for Atlantic Forwarding Ltd. and Sterling
Container Line Limited*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 31st day of May 2023, the foregoing Response was served via electronic mail on:

Complainant
SEAFair USA LLC
C/O LIANG + MOONEY, PLLC
Shanshan Liang, Esq.
sliang@customscourt.com
Counsel for SeaFair USA LLC

/s/ Ashley K. Kelley
Ashley K. Kelley, Esq.

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**RESPONDENT ATLANTIC FORWARDING LTD.'S RESPONSE
TO COMPLAINANT'S SECOND REQUEST TO PRODUCE DOCUMENTS**

Respondent Atlantic Forwarding Ltd. ("Atlantic"), through undersigned counsel, hereby responds to Complainant SeaFair USA LLC's ("SeaFair" or "Complainant") Second Request to Produce Documents pursuant to 46 C.F.R. § 502.146 as follows.

I. DISCOVERY RESPONSE BACKGROUND

Atlantic's responses to SeaFair's Second Set of Requests to Produce Documents are based on discovery available as of the date hereof and diligent investigation by Atlantic and its counsel. Further discovery, independent investigation, or other analysis may lead to the discovery of additional information, which may lead to additions or changes to the responses set forth herein. These responses are given without prejudice to Atlantic's right to disclose and rely on subsequently discovered information. Further, Atlantic's responses and objections are based upon the facts and information now known to it and may not in any way be deemed to be an admission or representation that further facts, information, or witnesses who have knowledge relevant to the subject matter of these requests do not exist. The fact that Atlantic has responded to any of the demands set forth

herein should not be taken as an admission that Atlantic accepts or admits the existence of any facts set forth or assumed by such demand or that such response constitutes admissible evidence. Atlantic expressly reserves the right to alter, supplement, amend, or otherwise modify these responses in any way at any time, including at trial, in light of facts determined to be relevant by Atlantic through discovery and further investigation.

II. GENERAL OBJECTIONS

In addition to the objections which are specifically set forth below in response to Complainant's Second Request for Production (the "Requests"), Atlantic objects to the Requests on the following grounds:

1. Atlantic objects to each demand to the extent it attempts or purports to require disclosure of confidential communications between attorney and client, or the disclosure of documents or information subject to and protected by the prohibition against discovery of attorney work product. The inadvertent disclosure of any such information shall not constitute a waiver of any privilege or of any right which Atlantic may have thought it objects to the use of such information.

2. Atlantic objects to each demand to the extent it seeks information beyond the scope of permissible discovery and seeks information which is neither relevant to the subject matter of this action nor reasonably calculated to lead to the discovery of admissible evidence.

3. Atlantic objects to each demand to the extent it attempts to require the disclosure of confidential settlement communications between the parties.

Subject to the foregoing objections and the specific objections set forth below, Atlantic responds as follows.

III. ATLANTIC'S RESPONSE

Complainant Request No. 1: Please provide copies of master bills of lading nos. MEDUDL407696, MEDUDL460729, MEDUDL472427, MEDUDL478333, MEDUDL529242, MEDUDL507933, MEDUDL507982, MEDUDL508931, MEDUDL522775, MEDUDL546311, MEDUDL555965, MEDUDL574784, MEDUDL590384, MEDUDL559397, MEDUDL624175, MEDUDL638472, MEDUDL638480, MEDUDL574297, MEDUDL574313, and MEDUDL574321.

Response: Documents responsive to this request are located in Discovery Exhibit 1.

Complainant Request No. 2: Please provide the bill of lading terms and conditions for the master bills of lading requested in Request No. 1.

Response: Documents responsive to this request are located in Discovery Exhibit 2.

Complainant Request No. 3: Please provide copies of all master bills of lading listed in Exhibit 1 to these Requests for Production (in Excel format), if not already produced in response to Request 1 above.

Response: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant. Notwithstanding the foregoing, Documents responsive to this request are located in Discovery Exhibit 1.

Complainant Request No. 4: Please provide a list of master bills of lading, by number, which were issued by MSC and in which Sterling was identified as shipper and SeaFair was identified as either forwarding agent or consignee.

Response: Atlantic objects to this request on the grounds that it that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant.

Complainant Request No. 5: Please provide copies of house bills of lading corresponding to master bills of lading nos. MEDUDL407696, MEDUDL460729, MEDUDL472427, MEDUDL478333, MEDUDL529242, MEDUDL507933, MEDUDL507982, MEDUDL508931, MEDUDL522775, MEDUDL546311, MEDUDL555965, MEDUDL574784, MEDUDL590384, MEDUDL559397, MEDUDL624175, MEDUDL638472, MEDUDL638480, MEDUDL574297, MEDUDL574313, and MEDUDL574321.

Response: Documents responsive to this request are located in Discovery Exhibit 1.

Complainant Request No. 6: Please provide copies of all house bills of lading listed in Exhibit 2 to these Requests for Production (in Excel format), if not already produced in response to Request 5 above.

Response: Atlantic objects to this request on the grounds that it that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant. Notwithstanding the foregoing, Documents responsive to this request are located in Discovery Exhibit 1.

Complainant Request No. 7: Please provide a list of house bills of lading, by number, which were issued by Sterling and for which SeaFair was identified as delivery agent in your ACOP system.

Response: Atlantic objects to this request on the grounds that it that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant.

Complainant Request No. 8: Please provide an organization chart of your company.

Response: No such documents were identified after diligent search and review, but Atlantic reserves the right to supplement this response and will provide any responsive documents identified in the future.

Complainant Request No. 9: Please provide all agency agreements relevant to this action executed between you and Sterling.

Response: Based on information and belief, none such agreements exist outside of what has already been produced to SeaFair by Atlantic.

IV. RESERVATION OF RIGHTS

Atlantic expressly reserves all, and does not waive any, rights with respect to continuing discovery under the Scheduling Order and FMC Rules, including the right to supplement or amend these responses at any time based on discovery and further investigation. Atlantic's responses herein do not constitute: (1) a waiver of any claims, defenses or positions advanced by Atlantic at any time during the pendency of these proceedings; (2) a waiver of the right to object on any ground to the use of said responses or the subject matter of each of the requests for admission in any subsequent proceeding in, or the trial of, this or any other action; (3) a waiver of the right to object on any ground, at any time, to a demand for further responses to these or any other discovery

procedures involving or relating to the subject matter of each of SeaFair's discovery requests; or
(4) a waiver of the right to object on any ground to these or any other or future discovery responses.

Date: May 31, 2023

Respectfully Submitted,

/s/ Ashley K. Kelley
Ashley K. Kelley, Esq.
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District of South Carolina #10369)
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Email: Ashley.Kelley@wbd-us.com

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Email: Julius.Bodie@wbd-us.com

*Counsel for Atlantic Forwarding Ltd. and Sterling
Container Line Limited*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 31st day of May 2023, the foregoing Response was served via electronic mail on:

Complainant
SEAFair USA LLC
C/O LIANG + MOONEY, PLLC
Shanshan Liang, Esq.
sliang@customscourt.com
Counsel for SeaFair USA LLC

/s/ Ashley K. Kelley
Ashley K. Kelley, Esq.

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**RESPONDENT STERLING CONTAINER LINE LIMITED'S
RESPONSE TO COMPLAINANT'S SECOND SET OF REQUESTS FOR ADMISSION**

Respondent Sterling Container Line Limited ("Sterling"), through undersigned counsel, hereby responds to Complainant SeaFair USA LLC's ("SeaFair" or "Complainant") Second Set of Requests for Admission (the "RFA") pursuant to 46 C.F.R. § 502.147, upon information and belief, as follows.

I. DISCOVERY RESPONSE BACKGROUND

Sterling's responses to SeaFair's Second Set of Requests for Admission are based on discovery available as of the date hereof and diligent investigation by Sterling and its counsel. Further discovery, independent investigation, or other analysis may lead to the discovery of additional information, which may lead to additions or changes to the responses set forth herein. These responses are given without prejudice to Sterling's right to disclose and rely on subsequently discovered information. Further, Sterling's responses and objections are based upon the facts and information now known to it and may not in any way be deemed to be an admission or representation that further facts, information, or witnesses who have knowledge relevant to the subject matter of

these requests do not exist. Sterling expressly reserves the right to alter, supplement, amend, or otherwise modify these responses in any way at any time, including at trial, in light of facts determined to be relevant by Sterling through discovery and further investigation.

II. STERLING'S RESPONSE

Request for Admission No. 1: Admit that MSC is a shareholder of Sterling and/or Atlantic.

RESPONSE: Sterling objects to this Request to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Sterling's defenses. Notwithstanding the foregoing, denied.

Request for Admission No. 2: Admit that MSC directly or indirectly owns shares of Sterling and/or Atlantic.

RESPONSE: Sterling objects to this Request to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Sterling's defenses. Notwithstanding the foregoing, denied.

Request for Admission No. 3: Admit that the house bills of lading attached as Exhibit 1 to this Request for Admission were issued by Sterling.

RESPONSE: Sterling objects to this request to the extent that it is unclear and ambiguous. Notwithstanding the foregoing, Sterling admits that on the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions on pages 2, 21, 40, 59, 78, 97, 116, 135, 154, 173, 192, 211, 230, 249, 268, 287, 306, 325, 344, and 363 identifies the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee.

Request for Admission No. 4: Admit that under the house bills of lading listed in Exhibit 1 and the house bill of lading terms and conditions, the shippers and consignees on those bills of lading are merchants pursuant to Sterling bills of lading terms and conditions.

RESPONSE: Sterling objects to this request to the extent that it is unclear, ambiguous and duplicative. Notwithstanding the foregoing, Sterling admits that the terms and conditions attached to the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions define "Merchant" to include "the Shipper, Consignee, holder of this Sea Waybill, the receiver of the Goods and any Person owning, entitled to or claiming the possession of the Goods or of this Sea Waybill or anyone acting on behalf of this Person."

Request for Admission No. 5: Admit that under the house bills of lading listed in Exhibit 1 and the house bill of lading terms and conditions, the shippers and consignees are liable to Sterling for freight as defined in Sterling Bill of Lading Terms and Conditions produced as Exhibit 14 to Sterling's Response to SeaFair's First Requests for Production.

RESPONSE: Sterling objects to this request to the extent that it is unclear, ambiguous and duplicative. Notwithstanding the foregoing, Atlantic admits that the terms and conditions attached to the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions on pages 2, 21, 40, 59, 78, 97, 116, 135, 154, 173, 192, 211, 230, 249, 268, 287, 306, 325, 344, and 363 define "Freight and Charges" in Section 16 as follows:

"16.1 Freight has been calculated on the basis of the Shipper's particulars and if such particulars are found to be erroneous and additional Freight is payable, the Merchant shall be liable therefor and also for any expense thereby incurred.

16.2 All Freight is earned and due upon receipt of the Goods by the Carrier, whether the Freight is prepaid or collect and the Carrier shall be entitled to all Freight due under all

circumstances, ship and/or cargo lost or not lost or the voyage abandoned. All Freight shall be paid when due without any set-off, counter claim, or deduction.

16.3 Every Person defined as "Merchant" in clause 1 shall be jointly and severally liable to the Carrier for the payment of all Freight and charges and for the performance of the obligations of each of them hereunder. Any Person engaged by the Merchant to perform forwarding services with respect to the Goods shall be considered to be exclusively the Merchant's agent for all purposes, and any payment of Freight to such Person shall not be considered payment to the Carrier in any event whatsoever. Failure of such third parties to pay any part of the Freight to the Carrier be considered a default by the Merchant in the payment of Freight.”

Request for Admission No. 6: Admit that under the house bills of lading listed in Exhibit 1 and the house bill of lading terms and conditions, freight includes ocean freight, all charges, costs, expenses that are payable to Sterling in accordance with Sterling’s tariff and bill of lading.

RESPONSE: Sterling objects to this request to the extent that it is unclear, ambiguous and duplicative. Notwithstanding the foregoing, Sterling admits that under the Sea Waybill terms and conditions identified in Exhibit 1 to SeaFair’s Second Set of Requests for Admission, “Freight” is defined to include “the freight and all charges, costs and expenses whatsoever payable to the Carrier in accordance with the applicable Tariff and this Sea Waybill, including storage, per diem and demurrage.”

Request for Admission No. 7: Admit that under the house bills of lading listed in Exhibit 1 and the house bill of lading terms and conditions, freight includes storage, per diem and demurrage.

RESPONSE: Sterling objects to this request to the extent that it is unclear, ambiguous and duplicative. Notwithstanding the foregoing, Sterling admits that under the Sea Waybill terms and

conditions identified in Exhibit 1 to SeaFair's Second Set of Requests for Admission, "Freight" is defined to include "the freight and all charges, costs and expenses whatsoever payable to the Carrier in accordance with the applicable Tariff and this Sea Waybill, including storage, per diem and demurrage."

Request for Admission No. 8: Admit that the master bills of lading attached as Exhibit 2 were issued by MSC.

RESPONSE: Sterling admits that the Sea Waybill identified on page 1 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions was issued by MSC. For the bills of lading identified in pages 3-40 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions, Sterling is the carrier identified.

Request for Admission No. 9: Admit that Atlantic was Sterling's agent for the house bills of lading listed in Exhibit 1 to this Request for Admission.

RESPONSE: Sterling admits that the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions on pages 2, 21, 40, 59, 78, 97, 116, 135, 154, 173, 192, 211, 230, 249, 268, 287, 306, 325, 344, and 363 identify the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee.

Request for Admission No. 10: Admit that the master bills of lading attached Exhibit 2 to this Request for Admission was issued by MSC.

RESPONSE: Sterling admits that the Sea Waybill identified on page 1 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions was issued by MSC. For the bills of lading identified in pages 3-40 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions, Sterling is the

carrier identified.

Request for Admission No. 11: Admit that the master bills of lading attached Exhibit 2 to this Request for Admission show Sterling as either shipper or consignee.

RESPONSE: Denied. Notwithstanding the foregoing, the shippers and consignees listed on the bills of lading in Exhibit 2 to SeaFair's Second Set of Requests for Admission provide as follows:

- No. SCLNSA322033
 - Shipper: MYS CHINA CO., LIMITED
 - Consignee: QUANTUM SOLUTIONS, INC.
- No. SCLDLC276056
 - Shipper: RISINGSUN TRADING(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC276035
 - Shipper: RISINGSUN LOGISTICS(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC276036
 - Shipper: RISINGSUN LOGISTICS(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC321600
 - Shipper: LUCKY SOUND COMMODITIES SUPPLYING INC
 - Consignee: CLEARFREIGHT ATLANTA BRANCH
- No. SCLDLC277285
 - Shipper: U-SELECT DALIAN TRADING CO., LTD
 - Consignee: TWINSBRIDGE INTERNATIONAL LLC
- No. SCLDLC322463

- Shipper: CENTURY DISTRIBUTION SYSTEMS
 - Consignee: CENTURY EXPRESS
- No. SCLDLC322473
 - Shipper: CENTURY DISTRIBUTION SYSTEMS
 - Consignee: CENTURY EXPRESS
- No. SCLDLC322459
 - Shipper: CENTURY DISTRIBUTION SYSTEMS
 - Consignee: CENTURY EXPRESS
- No. SCLDLC324762
 - Shipper: BDP INTERNATIONAL LTD.(CHINA)
 - Consignee: BDP TRANSPORT INC.
- No. SCLDLC324578
 - Shipper: RISINGSUN LOGISTICS(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC324575
 - Shipper: RISINGSUN LOGISTICS(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC324923
 - Shipper: SHANGHAI JIYIDA INTERNATIONAL LOGISTICS CO.,LTD
 - Consignee: FCC LOGISTICS INC
- No. SCLDLC324916
 - Shipper: SHANGHAI JIYIDA INTERNATIONAL LOGISTICS CO.,LTD
 - Consignee: FCC LOGISTICS INC
- No. SCLDLC325467
 - Shipper: HONGKONG LONSIN CHEMICAL LIMITED

- Consignee: GTE PETROCHEM INC
- No. SCLDLC325476
 - Shipper: EGF INTERNATIONAL (CHINA) CO., LTD. DALIAN BRANCH
 - Consignee: EVEREST GLOBAL FREIGHT SERVICES INC
- No. SCLDLC325455
 - Shipper: EGF INTERNATIONAL (CHINA) CO., LTD. DALIAN BRANCH
 - Consignee: EVEREST GLOBAL FREIGHT SERVICES INC
- No. SCLDLC325288
 - Shipper: CENTURY DISTRIBUTION SYSTEMS (SHENZHEN) LTD
 - Consignee: CENTURY EXPRESS.
- No. SCLDLC326645
 - Shipper: GLOBE CARGO LOGISTICS (CHINA)LTD
 - Consignee: AMERICAN GLOBAL LOGISTICS

Request for Admission No. 12: Admit that under the master bills of lading attached as Exhibit 2 to this Request for Admission and the master bill of lading terms and conditions, Sterling was a merchant pursuant to the carrier's bills of lading terms and conditions.

RESPONSE: Sterling admits that under the bills of lading attached as Exhibit 2 to SeaFair's Second Set of Requests for Admission, the term "Merchant" is defined to include "the Shipper, Consignee, holder of this Bill of Lading, the receiver of the Goods and any Person owning, entitled to or claiming the possession of the Goods or of this Bill of Lading or anyone acting on behalf of this Person."

Request for Admission No. 13: Admit that under the master bills of lading attached as Exhibit 2 to this Request for Admission and the master bill of lading terms and conditions, Sterling would

be liable to the carriers for freight as defined in the master Bill of Lading Terms and Conditions attached as Exhibit 2 to this Request for Admission.

RESPONSE: Sterling objects to this request to the extent it calls for a legal conclusion. Notwithstanding the foregoing, Sterling admits that under the bills of lading attached as Exhibit 2 to SeaFair's Second Set of Requests for Admission, "Freight and Charges" in Section 17 of the bills of lading terms and conditions provides as follows:

"17.1 Freight has been calculated on the basis of the Shipper's particulars and if such particulars are found to be erroneous and additional Freight is payable, the Merchant shall be liable therefor and also for any expense thereby incurred.

17.2 All Freight is earned and due upon receipt of the Goods by the Carrier, whether the Freight is prepaid or collect and the Carrier shall be entitled to all Freight due under all circumstances, ship and/or cargo lost or not lost or the voyage abandoned. All Freight shall be paid when due without any set-off, counter claim, or deduction.

17.3 Every Person defined as "Merchant" in clause 1 shall be jointly and severally liable to the Carrier for the payment of all Freight and charges and for the performance of the obligations of each of them hereunder. Any Person engaged by the Merchant to perform forwarding services with respect to the Goods shall be considered to be exclusively the Merchant's agent for all purposes, and any payment of Freight to such Person shall not be considered payment to the Carrier in any event whatsoever. Failure of such third parties to pay any part of the Freight to the Carrier shall be considered a default by the Merchant in the payment of Freight."

Sterling admits that under the same terms and conditions, "Merchant" is defined to include "the Shipper, Consignee, holder of this Bill of Lading, the receiver of the Goods and any Person owning, entitled to or claiming the possession of the Goods or of this Bill of Lading or anyone

acting on behalf of this Person.”

Request for Admission No. 14: Admit that under the master bills of lading attached as Exhibit 2 to this Request for Admission and the master bill of lading terms and conditions, freight includes ocean freight, all charges, costs, expenses that are payable to Sterling in accordance with Sterling’s tariff and bill of lading.

RESPONSE: Sterling admits that under the bill of lading terms and conditions identified in Exhibit 2, “Freight” is defined as follows: “‘Freight’ includes the freight and all charges, costs and expenses whatsoever payable to the Carrier in accordance with the applicable Tariff and this Bill of Lading, including storage, per diem and demurrage.”

Request for Admission No. 15: Admit that under the master bills of lading attached as Exhibit 2 to this Request for Admission and the master bill of lading terms and conditions, freight includes storage, per diem, demurrage, chassis charges, and any other charges invoiced by MSC pursuant to its tariff and bill of lading.

RESPONSE: Sterling objects to this request to the extent that it is vague, ambiguous, and calls for legal conclusion. Notwithstanding the foregoing, Sterling admits that under the bill of lading terms and conditions identified in Exhibit 2, “Freight” is defined as follows: “‘Freight’ includes the freight and all charges, costs and expenses whatsoever payable to the Carrier in accordance with the applicable Tariff and this Bill of Lading, including storage, per diem and demurrage.”

Request for Admission No. 16: Admit that if Sterling is found liable for paying MSC’s invoices (bates stamp nos. SeaFair000146 - 0003005 in SeaFair’s Response to Sterling and Atlantic Forwarding’s Initial Discovery Requests) to this Request for Admission, Sterling would seek

indemnification or reimbursement from the shippers or consignees identified on corresponding Sterling house bills of lading.

RESPONSE: Sterling objects to this request on the grounds that it calls for conjecture and speculation.

Request for Admission No. 17: Admit that SeaFair was the destination agent for Atlantic and/or Sterling for master bills of lading attached as Exhibit 2 to this Request for Admission.

RESPONSE: Sterling admits that SeaFair is identified as the destination agent on the following bills of lading in Exhibit 2 to SeaFair's Second Set of Requests for Admission: No. SCLNSA322033; No. SCLDLC276056; No. SCLDLC276035; No. SCLDLC276036; No. SCLDLC321600; No. SCLDLC277285; No. SCLDLC322463; No. SCLDLC322473; No. SCLDLC322459; No. SCLDLC324762; No. SCLDLC324578; No. SCLDLC324575; No. SCLDLC324923; No. SCLDLC324916; No. SCLDLC325467; No. SCLDLC325476; No. SCLDLC325455; No. SCLDLC325288; No. SCLDLC326645.

III. RESERVATION OF RIGHTS

Sterling expressly reserves all, and does not waive any, rights with respect to continuing discovery under the Scheduling Order and FMC Rules, including the right to supplement or amend these responses at any time based on discovery and further investigation. Sterling's responses herein do not constitute: (1) a waiver of any claims, defenses or positions advanced by Sterling at any time during the pendency of these proceedings; (2) a waiver of the right to object on any ground to the use of said responses or the subject matter of each of the requests for admission in any subsequent proceeding in, or the trial of, this or any other action; (3) a waiver of the right to object on any ground, at any time, to a demand for further responses to these or any other discovery

procedures involving or relating to the subject matter of each of SeaFair's discovery requests; or
(4) a waiver of the right to object on any ground to these or any other or future discovery responses.

Date: May 31, 2023

Respectfully Submitted,

/s/ Ashley K. Kelley
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District of South Carolina #10369)
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*Counsel for Atlantic Forwarding Ltd. and Sterling
Container Line Limited*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 31st day of May 2023, the foregoing Response was served via electronic mail on:

Complainant
SEAFair USA LLC
C/O LIANG + MOONEY, PLLC
Shanshan Liang, Esq.
sliang@customscourt.com
Counsel for SeaFair USA LLC

/s/ Ashley K. Kelley
Ashley K. Kelley, Esq.

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**RESPONDENT ATLANTIC FORWARDING LTD.'S
RESPONSE TO COMPLAINANT'S SECOND SET OF REQUESTS FOR ADMISSION**

Respondent Atlantic Forwarding Ltd. ("Atlantic"), through undersigned counsel, hereby responds to Complainant SeaFair USA LLC's ("SeaFair" or "Complainant") Second Set of Requests for Admission (the "RFA") pursuant to 46 C.F.R. § 502.147, upon information and belief, as follows.

I. DISCOVERY RESPONSE BACKGROUND

Atlantic's responses to SeaFair's Second Set of Requests for Admission are based on discovery available as of the date hereof and diligent investigation by Atlantic and its counsel. Further discovery, independent investigation, or other analysis may lead to the discovery of additional information, which may lead to additions or changes to the responses set forth herein. These responses are given without prejudice to Atlantic's right to disclose and rely on subsequently discovered information. Further, Atlantic's responses and objections are based upon the facts and information now known to it and may not in any way be deemed to be an admission or representation that further facts, information, or witnesses who have knowledge relevant to the subject matter of

these requests do not exist. Atlantic expressly reserves the right to alter, supplement, amend, or otherwise modify these responses in any way at any time, including at trial, in light of facts determined to be relevant by Atlantic through discovery and further investigation.

II. ATLANTIC'S RESPONSE

Request for Admission No. 1: Admit that MSC is a shareholder of Sterling and/or Atlantic.

RESPONSE: Atlantic objects to this Request to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Atlantic's defenses. Notwithstanding the foregoing, denied.

Request for Admission No. 2: Admit that MSC directly or indirectly owns shares of Sterling and/or Atlantic.

RESPONSE: Atlantic objects to this Request to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Atlantic's defenses. Notwithstanding the foregoing, denied.

Request for Admission No. 3: Admit that the house bills of lading attached as Exhibit 1 to this Request for Admission were issued by Sterling.

RESPONSE: Atlantic objects to this request to the extent that it is unclear and ambiguous. Notwithstanding the foregoing, Atlantic admits that on the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions on pages 2, 21, 40, 59, 78, 97, 116, 135, 154, 173, 192, 211, 230, 249, 268, 287, 306, 325, 344, and 363 identifies the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee.

Request for Admission No. 4: Admit that under the house bills of lading listed in Exhibit 1 and the house bill of lading terms and conditions, the shippers and consignees on those bills of lading are merchants pursuant to Sterling bills of lading terms and conditions.

RESPONSE: Atlantic objects to this request to the extent that it is unclear, ambiguous and duplicative. Notwithstanding the foregoing, Atlantic admits that the terms and conditions attached to the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions define "Merchant" to include "the Shipper, Consignee, holder of this Sea Waybill, the receiver of the Goods and any Person owning, entitled to or claiming the possession of the Goods or of this Sea Waybill or anyone acting on behalf of this Person."

Request for Admission No. 5: Admit that under the house bills of lading listed in Exhibit 1 and the house bill of lading terms and conditions, the shippers and consignees are liable to Sterling for freight as defined in Sterling Bill of Lading Terms and Conditions produced as Exhibit 14 to Sterling's Response to SeaFair's First Requests for Production.

RESPONSE: Atlantic objects to this request to the extent that it is unclear, ambiguous and duplicative. Notwithstanding the foregoing, Atlantic admits that the terms and conditions attached to the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions on pages 2, 21, 40, 59, 78, 97, 116, 135, 154, 173, 192, 211, 230, 249, 268, 287, 306, 325, 344, and 363 define "Freight and Charges" in Section 16 as follows:

"16.1 Freight has been calculated on the basis of the Shipper's particulars and if such particulars are found to be erroneous and additional Freight is payable, the Merchant shall be liable therefor and also for any expense thereby incurred.

16.2 All Freight is earned and due upon receipt of the Goods by the Carrier, whether the Freight is prepaid or collect and the Carrier shall be entitled to all Freight due under all

circumstances, ship and/or cargo lost or not lost or the voyage abandoned. All Freight shall be paid when due without any set-off, counter claim, or deduction.

16.3 Every Person defined as "Merchant" in clause 1 shall be jointly and severally liable to the Carrier for the payment of all Freight and charges and for the performance of the obligations of each of them hereunder. Any Person engaged by the Merchant to perform forwarding services with respect to the Goods shall be considered to be exclusively the Merchant's agent for all purposes, and any payment of Freight to such Person shall not be considered payment to the Carrier in any event whatsoever. Failure of such third parties to pay any part of the Freight to the Carrier shall be considered a default by the Merchant in the payment of Freight."

Request for Admission No. 6: Admit that under the house bills of lading listed in Exhibit 1 and the house bill of lading terms and conditions, freight includes ocean freight, all charges, costs, expenses that are payable to Sterling in accordance with Sterling's tariff and bill of lading.

RESPONSE: Atlantic objects to this request to the extent that it is unclear, ambiguous and duplicative. Notwithstanding the foregoing, Atlantic admits that under the Sea Waybill terms and conditions identified in Exhibit 1 to SeaFair's Second Set of Requests for Admission, "Freight" is defined to include "the freight and all charges, costs and expenses whatsoever payable to the Carrier in accordance with the applicable Tariff and this Sea Waybill, including storage, per diem and demurrage."

Request for Admission No. 7: Admit that under the house bills of lading listed in Exhibit 1 and the house bill of lading terms and conditions, freight includes storage, per diem and demurrage.

RESPONSE: Atlantic objects to this request to the extent that it is unclear, ambiguous and duplicative. Notwithstanding the foregoing, Atlantic admits that under the Sea Waybill terms and

conditions identified in Exhibit 1 to SeaFair's Second Set of Requests for Admission, "Freight" is defined to include "the freight and all charges, costs and expenses whatsoever payable to the Carrier in accordance with the applicable Tariff and this Sea Waybill, including storage, per diem and demurrage."

Request for Admission No. 8: Admit that the master bills of lading attached as Exhibit 2 were issued by MSC.

RESPONSE: Atlantic admits that the Sea Waybill identified on page 1 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions was issued by MSC. For the bills of lading identified in pages 3-40 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions, Sterling is the carrier identified.

Request for Admission No. 9: Admit that Atlantic was Sterling's agent for the house bills of lading listed in Exhibit 1 to this Request for Admission.

RESPONSE: Atlantic admits that the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions on pages 2, 21, 40, 59, 78, 97, 116, 135, 154, 173, 192, 211, 230, 249, 268, 287, 306, 325, 344, and 363 identify the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee.

Request for Admission No. 10: Admit that the master bills of lading attached Exhibit 2 to this Request for Admission was issued by MSC.

RESPONSE: Atlantic admits that the Sea Waybill identified on page 1 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions was issued by MSC. For the bills of lading identified in pages 3-40 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions, Sterling is the

carrier identified.

Request for Admission No. 11: Admit that the master bills of lading attached Exhibit 2 to this Request for Admission show Sterling as either shipper or consignee.

RESPONSE: Denied. Notwithstanding the foregoing, the shippers and consignees identified on the bills of lading in Exhibit 2 to SeaFair's Second Set of Requests for Admission are as follows:

- No. SCLNSA322033
 - Shipper: MYS CHINA CO., LIMITED
 - Consignee: QUANTUM SOLUTIONS, INC.
- No. SCLDLC276056
 - Shipper: RISINGSUN TRADING(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC276035
 - Shipper: RISINGSUN LOGISTICS(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC276036
 - Shipper: RISINGSUN LOGISTICS(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC321600
 - Shipper: LUCKY SOUND COMMODITIES SUPPLYING INC
 - Consignee: CLEARFREIGHT ATLANTA BRANCH
- No. SCLDLC277285
 - Shipper: U-SELECT DALIAN TRADING CO., LTD
 - Consignee: TWINSBRIDGE INTERNATIONAL LLC
- No. SCLDLC322463

- Shipper: CENTURY DISTRIBUTION SYSTEMS
 - Consignee: CENTURY EXPRESS
- No. SCLDLC322473
 - Shipper: CENTURY DISTRIBUTION SYSTEMS
 - Consignee: CENTURY EXPRESS
- No. SCLDLC322459
 - Shipper: CENTURY DISTRIBUTION SYSTEMS
 - Consignee: CENTURY EXPRESS
- No. SCLDLC324762
 - Shipper: BDP INTERNATIONAL LTD.(CHINA)
 - Consignee: BDP TRANSPORT INC.
- No. SCLDLC324578
 - Shipper: RISINGSUN LOGISTICS(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC324575
 - Shipper: RISINGSUN LOGISTICS(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC324923
 - Shipper: SHANGHAI JIYIDA INTERNATIONAL LOGISTICS CO.,LTD
 - Consignee: FCC LOGISTICS INC
- No. SCLDLC324916
 - Shipper: SHANGHAI JIYIDA INTERNATIONAL LOGISTICS CO.,LTD
 - Consignee: FCC LOGISTICS INC
- No. SCLDLC325467
 - Shipper: HONGKONG LONSIN CHEMICAL LIMITED

- Consignee: GTE PETROCHEM INC
- No. SCLDLC325476
 - Shipper: EGF INTERNATIONAL (CHINA) CO., LTD. DALIAN BRANCH
 - Consignee: EVEREST GLOBAL FREIGHT SERVICES INC
- No. SCLDLC325455
 - Shipper: EGF INTERNATIONAL (CHINA) CO., LTD. DALIAN BRANCH
 - Consignee: EVEREST GLOBAL FREIGHT SERVICES INC
- No. SCLDLC325288
 - Shipper: CENTURY DISTRIBUTION SYSTEMS (SHENZHEN) LTD
 - Consignee: CENTURY EXPRESS.
- No. SCLDLC326645
 - Shipper: GLOBE CARGO LOGISTICS (CHINA)LTD
 - Consignee: AMERICAN GLOBAL LOGISTICS

Request for Admission No. 12: Admit that under the master bills of lading attached as Exhibit 2 to this Request for Admission and the master bill of lading terms and conditions, Sterling was a merchant pursuant to the carrier's bills of lading terms and conditions.

RESPONSE: Atlantic admits that under the bills of lading attached as Exhibit 2 to SeaFair's Second Set of Requests for Admission, the term "Merchant" is defined to include "the Shipper, Consignee, holder of this Bill of Lading, the receiver of the Goods and any Person owning, entitled to or claiming the possession of the Goods or of this Bill of Lading or anyone acting on behalf of this Person."

Request for Admission No. 13: Admit that under the master bills of lading attached as Exhibit 2

to this Request for Admission and the master bill of lading terms and conditions, Sterling would be liable to the carriers for freight as defined in the master Bill of Lading Terms and Conditions attached as Exhibit 2 to this Request for Admission.

RESPONSE: Atlantic objects to this request to the extent it calls for a legal conclusion. Notwithstanding the foregoing, Atlantic admits that under the bills of lading attached as Exhibit 2 to SeaFair's Second Set of Requests for Admission, "Freight and Charges" in Section 17 of the bills of lading terms and conditions provides as follows:

"17.1 Freight has been calculated on the basis of the Shipper's particulars and if such particulars are found to be erroneous and additional Freight is payable, the Merchant shall be liable therefor and also for any expense thereby incurred.

17.2 All Freight is earned and due upon receipt of the Goods by the Carrier, whether the Freight is prepaid or collect and the Carrier shall be entitled to all Freight due under all circumstances, ship and/or cargo lost or not lost or the voyage abandoned. All Freight shall be paid when due without any set-off, counter claim, or deduction.

17.3 Every Person defined as "Merchant" in clause 1 shall be jointly and severally liable to the Carrier for the payment of all Freight and charges and for the performance of the obligations of each of them hereunder. Any Person engaged by the Merchant to perform forwarding services with respect to the Goods shall be considered to be exclusively the Merchant's agent for all purposes, and any payment of Freight to such Person shall not be considered payment to the Carrier in any event whatsoever. Failure of such third parties to pay any part of the Freight to the Carrier shall be considered a default by the Merchant in the payment of Freight."

Atlantic admits that under the same terms and conditions, "Merchant" is defined to include "the Shipper, Consignee, holder of this Bill of Lading, the receiver of the Goods and any Person

owning, entitled to or claiming the possession of the Goods or of this Bill of Lading or anyone acting on behalf of this Person.”

Request for Admission No. 14: Admit that under the master bills of lading attached as Exhibit 2 to this Request for Admission and the master bill of lading terms and conditions, freight includes ocean freight, all charges, costs, expenses that are payable to Sterling in accordance with Sterling’s tariff and bill of lading.

RESPONSE: Atlantic admits that under the bill of lading terms and conditions identified in Exhibit 2, “Freight” is defined as follows: “‘Freight’ includes the freight and all charges, costs and expenses whatsoever payable to the Carrier in accordance with the applicable Tariff and this Bill of Lading, including storage, per diem and demurrage.”

Request for Admission No. 15: Admit that under the master bills of lading attached as Exhibit 2 to this Request for Admission and the master bill of lading terms and conditions, freight includes storage, per diem, demurrage, chassis charges, and any other charges invoiced by MSC pursuant to its tariff and bill of lading.

RESPONSE: Atlantic objects to this request to the extent that it is vague, ambiguous, and calls for legal conclusion. Notwithstanding the foregoing, Atlantic admits that under the bill of lading terms and conditions identified in Exhibit 2, “Freight” is defined as follows: “‘Freight’ includes the freight and all charges, costs and expenses whatsoever payable to the Carrier in accordance with the applicable Tariff and this Bill of Lading, including storage, per diem and demurrage.”

Request for Admission No. 16: Admit that if Sterling is found liable for paying MSC’s invoices (bates stamp nos. SeaFair000146 - 0003005 in SeaFair’s Response to Sterling and Atlantic

Forwarding's Initial Discovery Requests) to this Request for Admission, Sterling would seek indemnification or reimbursement from the shippers or consignees identified on corresponding Sterling house bills of lading.

RESPONSE: Atlantic objects to this request on the grounds that it calls for conjecture and speculation regarding the future conduct of Respondent Sterling Container Line Ltd.

Request for Admission No. 17: Admit that SeaFair was the destination agent for Atlantic and/or Sterling for master bills of lading attached as Exhibit 2 to this Request for Admission.

RESPONSE: Atlantic admits that SeaFair is identified as the destination agent on the following bills of lading in Exhibit 2 to SeaFair's Second Set of Requests for Admission: No. SCLNSA322033; No. SCLDLC276056; No. SCLDLC276035; No. SCLDLC276036; No. SCLDLC321600; No. SCLDLC277285; No. SCLDLC322463; No. SCLDLC322473; No. SCLDLC322459; No. SCLDLC324762; No. SCLDLC324578; No. SCLDLC324575; No. SCLDLC324923; No. SCLDLC324916; No. SCLDLC325467; No. SCLDLC325476; No. SCLDLC325455; No. SCLDLC325288; No. SCLDLC326645.

III. RESERVATION OF RIGHTS

Atlantic expressly reserves all, and does not waive any, rights with respect to continuing discovery under the Scheduling Order and FMC Rules, including the right to supplement or amend these responses at any time based on discovery and further investigation. Atlantic's responses herein do not constitute: (1) a waiver of any claims, defenses or positions advanced by Atlantic at any time during the pendency of these proceedings; (2) a waiver of the right to object on any ground to the use of said responses or the subject matter of each of the requests for admission in any subsequent proceeding in, or the trial of, this or any other action; (3) a waiver of the right to

object on any ground, at any time, to a demand for further responses to these or any other discovery procedures involving or relating to the subject matter of each of SeaFair's discovery requests; or (4) a waiver of the right to object on any ground to these or any other or future discovery responses.

Date: May 31, 2023

Respectfully Submitted,

/s/ Ashley K. Kelley
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District of South Carolina #10369)
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*Counsel for Atlantic Forwarding Ltd. and Sterling
Container Line Limited*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 31st day of May 2023, the foregoing Response was served via electronic mail on:

Complainant
SEAFair USA LLC
C/O LIANG + MOONEY, PLLC
Shanshan Liang, Esq.
sliang@customscourt.com
Counsel for SeaFair USA LLC

/s/ Ashley K. Kelley
Ashley K. Kelley, Esq.

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFAIR USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**Sterling Container Line Limited and Atlantic Forwarding Ltd.’s Response to
Complainant’s Request for Clarification on Respondents’ Discovery Responses**

Respondents Sterling Container Line Limited (“Sterling”) and Atlantic Forwarding Ltd. (“Atlantic”) hereby respond to Complainant SeaFair USA LLC’s (“SeaFair” or “Complainant”) June 1, 2023 discovery document titled “Outstanding Issues” as follows.

I. Complainant’s First Set for Interrogatories

8. Please identify any house bills of lading listed in Exhibit 1 to Complainant’s Requests for Admissions that Sterling denies issuing (by itself or through Atlantic and/or its affiliates), if any.

RESPONSE: Atlantic objects to this interrogatory to the extent that it seeks information not relevant to SeaFair or Respondents’ claims or defenses and is not proportional to the needs of the case.

COMPLAINANT: This Request seeks information relevant to SeaFair’s claims and is proportional to the needs of the case because the house bills of lading listed in Exhibit 1 to Complainant’s Requests for Admissions are the house bills of lading under which Respondents owe SeaFair money.

RESPONDENT: Sterling’s house bills of lading are generally identified by the first three letters “SCL.” There are approximately 1,000 bill of lading numbers identified in PDF format in Exhibit 1 to Complainant’s Requests for Admission. The documents speak for themselves, and Atlantic craves reference to the documents themselves. Atlantic has not been able to review each and every bill of lading identified to date. However, from a sampling of the bills of lading identified in the referenced Exhibit 1, it is possible that Sterling is identified as the carrier for those bills of lading where the reference number begins with the “SCL” designation.

II. Complainant's First Request for Production

SeaFair's Request No. 1: Please provide all documents related to the services SeaFair performed for you and/or Atlantic from May 2021 to present.

RESPONSE: Atlantic objects to this request on the grounds that it is overbroad, vague, seeks duplicative information, and seeks information that is not proportional to the needs of the case. It is unclear what "services" are contemplated by this request. Notwithstanding the foregoing, documents responsive to this request are located in Discovery Exhibit 13.

COMPLAINANT: This request is not overbroad or vague: beginning in May 2021, Sterling, a subsidiary of Atlantic, engaged SeaFair to manage document turnover for US shipments under Sterling's house bill of lading, ("HBL"). These services continued into October 2022. These are the services contemplated by the request.

Additionally, the information requested is not duplicative: as the parent company of Sterling, Atlantic has access to documents related to the services rendered that are not readily accessible to SeaFair.

RESPONDENTS: Respondents continue to object to this request on the grounds that it is overbroad and vague, and that the scope of "services" is unclear to Respondents. Is SeaFair requesting copies of bills of lading for all shipments for which SeaFair was identified as a destination agent where Sterling is identified as carrier? Or all email correspondence between Respondents' employees and SeaFair personnel since May 2021? Numerous bills of lading and Sea Waybills with SeaFair identified as destination agent or consignee have already been produced by Complainant themselves as discovery request exhibits (*see, e.g.*, Exhibits 1 and 2 to Complainant's Second Set of Requests for Admission).

SeaFair's Request No. 3: Please provide all master bills of lading in which either Atlantic or Sterling was the shipper and/or consignee and SeaFair was the consignee and/or notify party.

Atlantic's Response: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant.

COMPLAINANT: This request is not overbroad: SeaFair conducted business with Sterling beginning in May 2021 and ending with failure to pay fees in October 2022. As such, this request encompasses a little over a year of documentation, confined to dealings between SeaFair, Sterling and Atlantic.

Additionally, the information requested is not duplicative: as the parent company of Sterling, Atlantic has access to documents that are not readily accessible to SeaFair. Moreover, these bills of lading are necessarily connected to other requests for documentation including: invoices and house bills of lading related to the master bills of lading.

RESPONDENTS: Numerous bills of lading and Sea Waybills with SeaFair identified as destination agent or consignee have already been produced by Complainant themselves as discovery request exhibits (*see, e.g.*, Exhibits 1 and 2 to Complainant's Second Set of Requests for Admission). Further, Respondents have provided SeaFair the bills of lading identified by SeaFair in its Discovery Responses to SeaFair's Second Set of Requests for Production (Request 1 and Request 5).

SeaFair's Request No. 5: Please provide all invoices you received from the carriers of the master bills of lading corresponding to Complainant Request No. 3 for services and/or charges related to the shipments carried under those bills of lading.

Atlantic's Response: See response to Request No. 3.

COMPLAINANT: See argument to compel Request No. 3.

RESPONDENTS: Respondents object to this request on the grounds that it is overbroad and unduly burdensome.

SeaFair's Request No. 6: Please provide all house bills of lading corresponding to the master bills of lading corresponding to Complainant Request No. 3.

Atlantic's Response: See response to Request No. 3.

COMPLAINANT: See argument to compel Request No. 3.

RESPONDENTS: Respondents object to this request on the grounds that it is overbroad and unduly burdensome.

Request No. 8: Please provide all invoices you issued to your customers, shippers, and/or consignees who were the merchants of the house bills of lading provided pursuant to Complainant Request No. 6 for services and/or charges related to the shipments carried under those bills of lading.

Atlantic's Response: Atlantic objects to this request on the grounds that it is overbroad, vague, seeks duplicative information, and seeks information that is not proportional to the needs of the case. See response to Request No. 3.

COMPLAINANT: See argument to compel Request No. 3.

RESPONDENTS: Respondents object to this request on the grounds that it is overbroad and unduly burdensome.

SeaFair's Request No. 15: Please provide documents related to your electronic data and document retention policies for the relevant time period.

Atlantic's Response: Atlantic objects to this request on the grounds that it is overbroad and vague. Atlantic objects to this request on the grounds that it seeks irrelevant information and information that is not proportional to the needs of the case.

COMPLAINANT: This request is not overbroad: the relevant time period is that of May 2021 to October 2022 when SeaFair and Sterling were conducting business. The documents requested are those that lay out in writing Atlantic's electronic data and document retention policies. This information is relevant because Atlantic's electronic data policies could reasonably be used to explain the informational inconsistencies alleged by Atlantic in Paragraph 16 of its Verified Answer and Defenses.

RESPONDENTS: In SeaFair's Responses to Respondents' First Set of Requests for Production, SeaFair objected to this same request by Respondents stating that "it seeks information that is irrelevant to the instant action." Notwithstanding the foregoing inconsistency (in that SeaFair now appears to believe that the parties' electronic data and document retention policies are now relevant to the instant action), documents responsive to this request include the Terms and Conditions produced previously by Respondents to SeaFair.

SeaFair's Request No. 16: Please provide all working group lists, organization charts, directories, or other documents sufficient to identify individuals and entities with knowledge of the facts which serve as the basis for the Verified Answer and Defenses to Complaint.

Atlantic's Response: Atlantic objects to this request on the grounds that it is overly broad, vague, irrelevant, has already been produced in Atlantic's discovery responses (e.g., Atlantic's Responses to Complainant's First Request for Interrogatories), and seeks information that is not proportional to the needs of the case.

COMPLAINANT: This request is neither overbroad nor vague. It is limited to organizational documentation related to the individuals who provided information used to draft the Verified Answer and Defense to the Complaint. This would include names and organizational charts.

RESPONDENTS: Such documents responsive to this request do not exist. Atlantic previously provided a list of individuals and entities with knowledge of the facts which serve as the basis for the Verified Answer and Defenses to Complaint can be, and have been, provided through Respondents' responses to SeaFair's Interrogatory Requests (*see, e.g.,* Respondents' Responses to Complainant's First and Second Set of Interrogatories).

III. Complainant's Second Request for Interrogatories

No. 2. Please identify your corporate structure, including names and addresses of officers, directors and shareholders.

Atlantic Response: Atlantic (Atlantic Forwarding AG) is a Swiss Limited entity (UID: CHE-101.507.822) based in Basel, Switzerland. The current board of directors for Atlantic Forwarding Group is comprised of Daniel Weissenberger (Chief Executive Officer), Christoph Ritt (Chief Financial Officer), and Marc Matschullat (Chief Commercial Officer and Chief Procurement

Officer).

Sterling Response: Sterling is a subsidiary of Atlantic Airfreight Systems Ltd. Hongkong & Atlantic Forwarding (China) Limited. Atlantic Airfreight Systems Ltd. & Atlantic Forwarding (China) Limited are 100% subsidiaries of Atlantic Expeditions AG Switzerland. In 2021 and 2022, the Directors of Sterling were Marco Iulita and Li Po Wah. The current board of directors for Atlantic Forwarding Group is comprised of Daniel Weissenberger (Chief Executive Officer), Christoph Ritt (Chief Financial Officer), and Marc Matschullat (Chief Commercial Officer and Chief Procurement Officer).

COMPLAINANT: You have not identified the Shareholders.

RESPONDENTS: See Respondents' Responses to Interrogatory No. 2 above.

No. 4. Please state your reason(s) for not attempting to collect the outstanding charges from the consignees and/or shippers identified on Sterling's house bills of lading after receiving the SeaFair invoices referenced in the Interrogatory above.

RESPONSE: Atlantic objects to this Interrogatory to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Atlantic's defenses. The documents produced in this matter speak for themselves.

COMPLAINANT: Whether Sterling/Atlantic has attempted to collect outstanding charges from the consignee and/or shippers identified on Sterling's house bills of lading and what efforts have been taken will show whether Sterling/Atlantic violated the Shipping Act by providing transportation not in accordance with its tariff. Therefore, this Request is likely to lead to the discovery of relevant and/or admissible evidence, and the information being sought is relevant to SeaFair's claims.

RESPONDENTS: Atlantic objects to this Interrogatory to the extent it is unlikely to lead to the discovery of relevant and/or admissible evidence, and that it seeks information not relevant to SeaFair's claims or Atlantic's defenses. The documents produced in this matter, including the terms and conditions applicable to the disputed shipments, speak for themselves. Notwithstanding the foregoing, the billing and collection of any local charges contracted and owed to SeaFair are the responsibility of SeaFair. Under Respondents' terms and conditions for its bills of lading, every Person defined as a "Merchant" "shall be jointly and severally liable to the Carrier for the payment of all Freight and charges and for the performance of the obligations of each of them hereunder. Any Person engaged by the Merchant to perform forwarding services with respect to the Goods shall be considered to be exclusively the Merchant's agent for all purposes, and any payment of Freight to such Person shall not be considered payment to the Carrier in any event whatsoever. Failure of such third parties to pay any part of the Freight to the Carrier shall be considered a default by the Merchant in the payment of Freight."

IV. Complainant's Second Request for Production

Complainant Request No. 3: Please provide copies of all master bills of lading listed in Exhibit 1 to these Requests for Production (in Excel format), if not already produced in response to Request 1 above.

RESPONSE: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant. Notwithstanding the foregoing, Documents responsive to this request are located in Discovery Exhibit 1.

COMPLAINANT: This request is not overbroad: SeaFair conducted business with Sterling beginning in May 2021 and ending with failure to pay fees in October 2022. As such, this request encompasses a little over a year of documentation, confined to dealings between SeaFair, Sterling, and Atlantic.

Additionally, the information requested is not duplicative. As the parent company of Sterling, Atlantic has access to documents that are not readily accessible to SeaFair. Moreover, these bills of lading are necessarily connected to other requests for documentation including invoices and house bills of lading related to the master bills of lading.

You only produced a small set of master bills of lading listed in Exhibit 1. Please produce the remaining master bills of lading or confirm that you do not have the remaining master bills of lading.

RESPONDENTS: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant. Respondents have provided SeaFair the bills of lading identified by SeaFair in its Discovery Responses to SeaFair's Second Set of Requests for Production (Request 1 and Request 5). SeaFair states that the bills of lading requested are not readily accessible to SeaFair, yet SeaFair has produced dozens of bills of lading and Sea Waybills that are the subject of this request for production. SeaFair clearly can access the requested documents for production, as SeaFair purports to have been the destination agent and/or consignee for each of the bills of lading and Sea Waybills requested in the referenced Exhibit 1.

Complainant Request No. 4: Please provide a list of master bills of lading, by number, which were issued by MSC and in which Sterling was identified as shipper and SeaFair was identified as either forwarding agent or consignee.

RESPONSE: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant.

COMPLAINANT: This request is not overbroad: SeaFair conducted business with Sterling beginning in May 2021 and ending with failure to pay fees in October 2022. As such, this request

encompasses a little over a year of documentation, confined to dealings between SeaFair, Sterling and Atlantic.

Additionally, the information requested is not duplicative: as the parent company of Sterling, Atlantic has access to documents that are not readily accessible to SeaFair. Moreover, these bills of lading are necessarily connected to other requests for documentation including: invoices and house bills of lading related to the master bills of lading.

RESPONDENTS: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant. Respondents have provided SeaFair the bills of lading identified by SeaFair in its Discovery Responses to SeaFair's Second Set of Requests for Production (Request 1 and Request 5). SeaFair states that the bills of lading requested are not readily accessible to SeaFair, yet SeaFair has produced dozens of bills of lading and Sea Waybills that are the subject of this request for production, as well as lists of close to a thousand bills of lading by number which were purportedly issued by MSC and in which Sterling was identified as shipper and SeaFair was identified as either forwarding agent or consignee (*see, e.g.*, Exhibits 1 and 2 to SeaFair's Second Set of Requests for Production). SeaFair clearly can access the requested list for production, as it has already done so as part of its own discovery requests.

Complainant Request No. 6: Please provide copies of all house bills of lading listed in Exhibit 2 to these Requests for Production (in Excel format), if not already produced in response to Request 5 above.

RESPONSE: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant. Notwithstanding the foregoing, documents responsive to this request are located in Discovery Exhibit 1.

COMPLAINANT: This request is not overbroad: SeaFair conducted business with Sterling beginning in May 2021 and ending with failure to pay fees in October 2022. As such, this request encompasses a little over a year of documentation, confined to dealings between SeaFair, Sterling and Atlantic.

Additionally, the information requested is not duplicative. As the parent company of Sterling, Atlantic has access to documents that are not readily accessible to SeaFair. Moreover, these bills of lading are necessarily connected to other requests for documentation including invoices and house bills of lading related to the master bills of lading.

You only produced a small set of house bills of lading listed in Exhibit 2. Please produce the remaining master bills of lading or confirm that you do not have the remaining house bills of lading.

RESPONDENTS: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant. Respondents have provided SeaFair the bills of

lading identified by SeaFair in its Discovery Responses to SeaFair's Second Set of Requests for Production (Request 1 and Request 5). SeaFair states that the bills of lading requested are not readily accessible to SeaFair, yet SeaFair has produced dozens of bills of lading and Sea Waybills that are the subject of this request for production. SeaFair clearly can access the requested documents for production, as SeaFair purports to have been the destination agent and/or consignee for each of the bills of lading and Sea Waybills requested in the referenced Exhibit 2.

Complainant Request No. 7: Please provide a list of house bills of lading, by number, which were issued by Sterling and for which SeaFair was identified as delivery agent in your ACOP system.

Response: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant.

COMPLAINANT: This request is not overbroad: SeaFair conducted business with Sterling beginning in May 2021 and ending with failure to pay fees in October 2022. As such, this request encompasses a little over a year of documentation, confined to dealings between SeaFair, Sterling and Atlantic.

Additionally, the information requested is not duplicative. As the parent company of Sterling, Atlantic has access to documents that are not readily accessible to SeaFair. Moreover, these bills of lading are necessarily connected to other requests for documentation including invoices and house bills of lading related to the master bills of lading.

RESPONDENTS: Atlantic objects to this request on the grounds that it is overbroad, unduly burdensome, and seeks duplicative information already in the possession of, known to, or otherwise equally available to the Complainant. Respondents have provided SeaFair the bills of lading identified by SeaFair in its Discovery Responses to SeaFair's Second Set of Requests for Production (Request 1 and Request 5). SeaFair states that the bills of lading requested are not readily accessible to SeaFair, yet SeaFair has produced dozens of bills of lading and Sea Waybills that are the subject of this request for production, as well as lists of close to a thousand bills of lading by number which were purportedly issued by MSC and in which Sterling was identified as shipper and SeaFair was identified as either destination agent or consignee (*see, e.g.*, Exhibits 1 and 2 to SeaFair's Second Set of Requests for Production). SeaFair clearly can access the requested list for production, as it has already done so as part of its own discovery requests.

Complainant Request No. 9: Please provide all agency agreements relevant to this action executed between you and Sterling.

Response: Based on information and belief, none such agreements exist outside of what has already been produced to SeaFair by Atlantic.

COMPLAINANT: We do not see any agency agreements produced. Please identify any agency agreements produced by Bates number or Exhibit number.

RESPONDENTS: No such agreements have been identified by Respondents to date.

V. Complainant's Second Request for Admission

Request for Admission No. 3: Admit that the house bills of lading attached as Exhibit 1 to this Request for Admission were issued by Sterling.

RESPONSE: Atlantic objects to this request to the extent that it is unclear and ambiguous. Notwithstanding the foregoing, Atlantic admits that on the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions on pages 2, 21, 40, 59, 78, 97, 116, 135, 154, 173, 192, 211, 230, 249, 268, 287, 306, 325, 344, and 363 identifies the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee.

COMPLAINANT: Please admit or deny the remaining pages of the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions.

RESPONDENTS: On June 5, 2023, 35 days after the Scheduling Order deadline for the last day to serve discovery requests in this case, SeaFair requested that Respondents provide updated responses to 14 of 17 requests for admission in Complainant's Second Set of Requests for Admission (dated May 1, 2023) due to the fact that SeaFair mislabeled the exhibits in its Second Set of Requests for Admission. The only Sea Waybills identified in the original Exhibit 1 to Complainant's Second Set of Requests for Admission are on pages 2-3, 21-22, 40-41, 59-60, 78-79, 97-98, 116-117, 135-136, 154-155, 173-174, 192-193, 211-212, 230-231, 249-250, 268-269, 287-288, 306-307, 325-326, 344-345, and 363-364. Each identifies the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee. Atlantic objects to SeaFair's attempt to improperly serve any modified, amended, and/or new discovery requests after the Scheduling Order deadline.

Each of the bills of lading identified in the Original Exhibit 2 to Complainant's Second Set of Requests for Admission (page 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31, 33, 35, 37, and 39) identify Sterling as the carrier. The shippers and consignees identified on the referenced bills of lading in Original Exhibit 2 to SeaFair's Second Set of Requests for Admission are as follows:

- No. SCLNSA322033
 - Shipper: MYS CHINA CO., LIMITED
 - Consignee: QUANTUM SOLUTIONS, INC.
- No. SCLDLC276056
 - Shipper: RISINGSUN TRADING(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC276035
 - Shipper: RISINGSUN LOGISTICS(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC276036
 - Shipper: RISINGSUN LOGISTICS(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC321600
 - Shipper: LUCKY SOUND COMMODITIES SUPPLYING INC
 - Consignee: CLEARFREIGHT ATLANTA BRANCH
- No. SCLDLC277285
 - Shipper: U-SELECT DALIAN TRADING CO., LTD

- Consignee: TWINSBRIDGE INTERNATIONAL LLC
- No. SCLDLC322463
 - Shipper: CENTURY DISTRIBUTION SYSTEMS
 - Consignee: CENTURY EXPRESS
- No. SCLDLC322473
 - Shipper: CENTURY DISTRIBUTION SYSTEMS
 - Consignee: CENTURY EXPRESS
- No. SCLDLC322459
 - Shipper: CENTURY DISTRIBUTION SYSTEMS
 - Consignee: CENTURY EXPRESS
- No. SCLDLC324762
 - Shipper: BDP INTERNATIONAL LTD.(CHINA)
 - Consignee: BDP TRANSPORT INC.
- No. SCLDLC324578
 - Shipper: RISINGSUN LOGISTICS(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC324575
 - Shipper: RISINGSUN LOGISTICS(DALIAN)CO.,LTD
 - Consignee: BOOKING UNION USA INC
- No. SCLDLC324923
 - Shipper: SHANGHAI JIYIDA INTERNATIONAL LOGISTICS CO.,LTD
 - Consignee: FCC LOGISTICS INC
- No. SCLDLC324916
 - Shipper: SHANGHAI JIYIDA INTERNATIONAL LOGISTICS CO.,LTD
 - Consignee: FCC LOGISTICS INC
- No. SCLDLC325467
 - Shipper: HONGKONG LONSIN CHEMICAL LIMITED
 - Consignee: GTE PETROCHEM INC
- No. SCLDLC325476
 - Shipper: EGF INTERNATIONAL (CHINA) CO., LTD. DALIAN BRANCH
 - Consignee: EVEREST GLOBAL FREIGHT SERVICES INC
- No. SCLDLC325455
 - Shipper: EGF INTERNATIONAL (CHINA) CO., LTD. DALIAN BRANCH
 - Consignee: EVEREST GLOBAL FREIGHT SERVICES INC
- No. SCLDLC325288
 - Shipper: CENTURY DISTRIBUTION SYSTEMS (SHENZHEN) LTD
 - Consignee: CENTURY EXPRESS.
- No. SCLDLC326645
 - Shipper: GLOBE CARGO LOGISTICS (CHINA)LTD
 - Consignee: AMERICAN GLOBAL LOGISTICS

Request for Admission No. 5: Admit that under the house bills of lading listed in Exhibit 1 and the house bill of lading terms and conditions, the shippers and consignees are liable to Sterling for freight as defined in Sterling Bill of Lading Terms and Conditions produced as Exhibit 14 to Sterling's Response to SeaFair's First Requests for Production.

RESPONSE: Atlantic objects to this request to the extent that it is unclear, ambiguous and duplicative. Notwithstanding the foregoing, Atlantic admits that the terms and conditions attached

to the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions on pages 2, 21, 40, 59, 78, 97, 116, 135, 154, 173, 192, 211, 230, 249, 268, 287, 306, 325, 344, and 363 define "Freight and Charges" in Section 16 as follows...

COMPLAINANT: Please admit or deny the remaining pages of the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions.

RESPONDENTS: On June 5, 2023, 35 days after the Scheduling Order deadline for the last day to serve discovery requests in this case, SeaFair requested that Respondents provide updated responses to 14 of 17 requests for admission in Complainant's Second Set of Requests for Admission (dated May 1, 2023) due to the fact that SeaFair mislabeled the exhibits in its Second Set of Requests for Admission.

The only Sea Waybills identified in the original Exhibit 1 to Complainant's Second Set of Requests for Admission are on pages 2-3, 21-22, 40-41, 59-60, 78-79, 97-98, 116-117, 135-136, 154-155, 173-174, 192-193, 211-212, 230-231, 249-250, 268-269, 287-288, 306-307, 325-326, 344-345, and 363-364. Respondents admit that the terms and conditions attached to the Sea Waybills identified in SeaFair's Original Exhibit 1 define "Freight and Charges" in Section 16 as follows:

"16.1 Freight has been calculated on the basis of the Shipper's particulars and if such particulars are found to be erroneous and additional Freight is payable, the Merchant shall be liable therefor and also for any expense thereby incurred.

16.2 All Freight is earned and due upon receipt of the Goods by the Carrier, whether the Freight is prepaid or collect and the Carrier shall be entitled to all Freight due under all circumstances, ship and/or cargo lost or not lost or the voyage abandoned. All Freight shall be paid when due without any set-off, counter claim, or deduction.

16.3 Every Person defined as "Merchant" in clause 1 shall be jointly and severally liable to the Carrier for the payment of all Freight and charges and for the performance of the obligations of each of them hereunder. Any Person engaged by the Merchant to perform forwarding services with respect to the Goods shall be considered to be exclusively the Merchant's agent for all purposes, and any payment of Freight to such Person shall not be considered payment to the Carrier in any event whatsoever. Failure of such third parties to pay any part of the Freight to the Carrier shall be considered a default by the Merchant in the payment of Freight."

Each of the bills of lading identified in the Original Exhibit 2 to Complainant's Second Set of Requests for Admission (page 3, 5, 7, 9, 11, 13, 15, 17, 19, 21, 23, 25, 27, 29, 31, 33, 35, 37, and 39) contain terms and conditions that define "Freight and Charges" in Section 17 as follows:

"17.1 Freight has been calculated on the basis of the Shipper's particulars and if such particulars are found to be erroneous and additional Freight is payable, the Merchant shall be liable therefor and also for any expense thereby incurred.

17.2 All Freight is earned and due upon receipt of the Goods by the Carrier, whether the Freight is prepaid or collect and the Carrier shall be entitled to all Freight due under all circumstances, ship and/or cargo lost or not lost or the voyage abandoned. All Freight shall be paid when due without any set-off, counter claim, or deduction.

17.3 Every Person defined as "Merchant" in clause 1 shall be jointly and severally liable to the Carrier for the payment of all Freight and charges and for the performance of the obligations of each of them hereunder. Any Person engaged by the Merchant to perform

forwarding services with respect to the Goods shall be considered to be exclusively the Merchant's agent for all purposes, and any payment of Freight to such Person shall not be considered payment to the Carrier in any event whatsoever. Failure of such third parties to pay any part of the Freight to the Carrier shall be considered a default by the Merchant in the payment of Freight.”

Request for Admission No. 8: Admit that the master bills of lading attached as Exhibit 2 were issued by MSC.

RESPONSE: Atlantic admits that the Sea Waybill identified on page 1 of SeaFair’s Exhibit 2 to the Second Set of Requests for Admissions was issued by MSC. For the bills of lading identified in pages 3-40 of SeaFair’s Exhibit 2 to the Second Set of Requests for Admissions, Sterling is the carrier identified.

COMPLAINANT: Please admit or deny the remaining pages of the Sea Waybills identified in SeaFair’s Exhibit 2 to the Second Set of Requests for Admissions.

RESPONDENTS: On June 5, 2023, 35 days after the Scheduling Order deadline for the last day to serve discovery requests in this case, SeaFair requested that Respondents provide updated responses to 14 of 17 requests for admission in Complainant’s Second Set of Requests for Admission (dated May 1, 2023) due to the fact that SeaFair mislabeled the exhibits in its Second Set of Requests for Admission. The only Sea Waybills identified in the original Exhibit 1 to Complainant’s Second Set of Requests for Admission are on pages 2-3, 21-22, 40-41, 59-60, 78-79, 97-98, 116-117, 135-136, 154-155, 173-174, 192-193, 211-212, 230-231, 249-250, 268-269, 287-288, 306-307, 325-326, 344-345, and 363-364. Each was issued by MSC and identifies the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee. Atlantic objects to SeaFair’s attempt to improperly serve any modified, amended, and/or new discovery requests after the Scheduling Order deadline

For the bills of lading identified in pages 3-40 of SeaFair’s Original Exhibit 2 to the Second Set of Requests for Admissions, Sterling is the carrier identified.

Request for Admission No. 9: Admit that Atlantic was Sterling’s agent for the house bills of lading listed in Exhibit 1 to this Request for Admission.

RESPONSE: Atlantic admits that the Sea Waybills identified in SeaFair’s Exhibit 1 to the Second Set of Requests for Admissions on pages 2, 21, 40, 59, 78, 97, 116, 135, 154, 173, 192, 211, 230, 249, 268, 287, 306, 325, 344, and 363 identify the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee.

COMPLAINANT: Please admit or deny the remaining pages of the Sea Waybills identified in SeaFair’s Exhibit 1 to the Second Set of Requests for Admissions.

RESPONDENTS: On June 5, 2023, 35 days after the Scheduling Order deadline for the last day to serve discovery requests in this case, SeaFair requested that Respondents provide updated responses to 14 of 17 requests for admission in Complainant’s Second Set of Requests for Admission (dated May 1, 2023) due to the fact that SeaFair mislabeled the exhibits in its Second

Set of Requests for Admission. The only Sea Waybills identified in the original Exhibit 1 to Complainant's Second Set of Requests for Admission are on pages 2-3, 21-22, 40-41, 59-60, 78-79, 97-98, 116-117, 135-136, 154-155, 173-174, 192-193, 211-212, 230-231, 249-250, 268-269, 287-288, 306-307, 325-326, 344-345, and 363-364. Each identifies the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee. Atlantic objects to SeaFair's attempt to improperly serve any modified, amended, and/or new discovery requests after the Scheduling Order deadline

For the bills of lading identified in pages 3-40 of SeaFair's Original Exhibit 2 to the Second Set of Requests for Admissions, Sterling is the carrier identified and SeaFair is the destination agent identified.

Request for Admission No. 10: Admit that the master bills of lading attached Exhibit 2 to this Request for Admission was issued by MSC.

RESPONSE: Atlantic admits that the Sea Waybill identified on page 1 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions was issued by MSC. For the bills of lading identified in pages 3-40 of SeaFair's Exhibit 2 to the Second Set of Requests for Admissions, Sterling is the carrier identified.

COMPLAINANT: Please admit or deny the remaining pages of the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions.

RESPONDENTS: On June 5, 2023, 35 days after the Scheduling Order deadline for the last day to serve discovery requests in this case, SeaFair requested that Respondents provide updated responses to 14 of 17 requests for admission in Complainant's Second Set of Requests for Admission (dated May 1, 2023) due to the fact that SeaFair mislabeled the exhibits in its Second Set of Requests for Admission. The only Sea Waybills identified in the original Exhibit 1 to Complainant's Second Set of Requests for Admission are on pages 2-3, 21-22, 40-41, 59-60, 78-79, 97-98, 116-117, 135-136, 154-155, 173-174, 192-193, 211-212, 230-231, 249-250, 268-269, 287-288, 306-307, 325-326, 344-345, and 363-364. Each was issued by MSC and identifies the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee. Atlantic objects to SeaFair's attempt to improperly serve any modified, amended, and/or new discovery requests after the Scheduling Order deadline

For the bills of lading identified in pages 3-40 of SeaFair's Original Exhibit 2 to the Second Set of Requests for Admissions, Sterling is the carrier identified and SeaFair is the destination agent identified.

Request for Admission No. 17: Admit that SeaFair was the destination agent for Atlantic and/or Sterling for master bills of lading attached as Exhibit 2 to this Request for Admission.

RESPONSE: Atlantic admits that SeaFair is identified as the destination agent on the following bills of lading in Exhibit 2 to SeaFair's Second Set of Requests for Admission: No.

SCLNSA322033; No. SCLDLC276056; No. SCLDLC276035; No. SCLDLC276036; No. SCLDLC321600; No. SCLDLC277285; No. SCLDLC322463; No. SCLDLC322473; No. SCLDLC322459; No. SCLDLC324762; No. SCLDLC324578; No. SCLDLC324575; No. SCLDLC324923; No. SCLDLC324916; No. SCLDLC325467; No. SCLDLC325476; No. SCLDLC325455; No. SCLDLC325288; No. SCLDLC326645.

COMPLAINANT: Please admit or deny the remaining pages of the Sea Waybills identified in SeaFair's Exhibit 1 to the Second Set of Requests for Admissions.

RESPONDENTS: On June 5, 2023, 35 days after the Scheduling Order deadline for the last day to serve discovery requests in this case, SeaFair requested that Respondents provide updated responses to 14 of 17 requests for admission in Complainant's Second Set of Requests for Admission (dated May 1, 2023) due to the fact that SeaFair mislabeled the exhibits in its Second Set of Requests for Admission. The only Sea Waybills identified in the original Exhibit 1 to Complainant's Second Set of Requests for Admission are on pages 2-3, 21-22, 40-41, 59-60, 78-79, 97-98, 116-117, 135-136, 154-155, 173-174, 192-193, 211-212, 230-231, 249-250, 268-269, 287-288, 306-307, 325-326, 344-345, and 363-364. Each was issued by MSC and identifies the shipper as Atlantic Forwarding (China) Co. Ltd. as agent of Sterling, and SeaFair as consignee. Atlantic objects to SeaFair's attempt to improperly serve any modified, amended, and/or new discovery requests after the Scheduling Order deadline

For the bills of lading identified in pages 3-40 of SeaFair's Original Exhibit 2 to the Second Set of Requests for Admissions, Sterling is the carrier identified and SeaFair is the destination agent identified.

VI. Reservation of Rights

Respondents have attempted in good faith to resolve the supplemental requests raised by SeaFair, but reserve all applicable defenses and objections.

Date: June 8, 2023

{Signature Page Follows}

Respectfully Submitted,

/s/ Ashley K. Kelley
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